

DATE: 2005/06/29

**ONTARIO
SUPERIOR COURT OF JUSTICE**

BETWEEN:

**SYED NAMATULLA HUSSAINI,
SYED OBAIDULLA HUSSAINI and
SYED BARKATULLA HUSSAINI**

Plaintiffs

Ian Goldberg on days 1 and 2 only

Eric B. Heath, Counsel for the Plaintiff,
Syed Namatulla Hussaini

**Joseph G. Caprara, Counsel for
the Plaintiff, Syed Obaidulla Hussaini**

**Joel P. Freedman, Counsel for the Plaintiff,
Syed Barkatulla Hussaini**

- AND -

HARJOT RITA BAINS also known as RITA SHERGILL, and AMARJIT DHILLON

Defendants

***Michael W. Smith, Counsel for the
Defendants, Bains and Dhillon***

Court File No.: 04-CV-273720-CM4

BETWEEN:

**SYED NAMATULLA HUSSAINI,
SYED OBAIDULLA HUSSAINI and
SYED BARKATULLA HUSSAINI**

Plaintiffs

***Eric B. Heath, Counsel for the Plaintiff,
Syed Namatulla Hussaini***

**Joseph G. Caprara, Counsel for
the Plaintiff, Syed Obaidulla Hussaini**

**Joel P. Freedman, Counsel for the Plaintiff,
Syed Barkatulla Hussaini**

- AND -

**STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY**

Defendant

**Robert S. Franklin, Counsel for the
Defendant State Farm Mutual Automobile
Insurance Company**

HEARD: September 21, 23, 24, 27, 28, 29, and 30; October 1, 4, 5, 6, 7, 8, 12, 14, 15, 18, 19, 20, 21, 22, 25, 26, 28, and 29; November 1, 2, 3; December 20 and 21, 2004

GREER J.

REASONS

[1] Four Hussaini brothers were involved in an automobile accident on December 25, 1990, as they proceeded north on Highway 27, near Belfield Drive, after dark. Three of the brothers made tort claims against the owner of and against the driver of the other car. They also made and Accident Benefit Claims against the insurer, State Farm Mutual Automobile Insurance Company (“State Farm”). The two separate actions were ordered tried together. The Trial began before me on September 21, 2004, nearly 14 years after the accident occurred. All three brothers claim that the soft tissue injuries they say that they received in the accident have caused them to be unable to work since the accident.

[2] The Plaintiffs moved before me at the opening of the Trial, to strike the Jury Notices of the Defendants. I did so and delivered written Reasons for my decision. The three brothers who are the Plaintiffs are Syed Namatulla Hussaini (“Namatulla”), Syed Obaidulla Hussaini (“Obaidulla”) and Syed Barkatulla Hussaini (“Barkatulla”). I shall refer to each by his middle name, throughout these Reasons for Judgment, in order to distinguish among the three of them as to who claims what injuries and how each was medically treated over the years.

[3] On the second day of Trial, Obaidulla’s counsel informed the Court that he had settled his Accident Benefits Claim against State Farm. On day 15 of the Trial, and before he was to give evidence, Barkatulla settled all his claims and took no part in the proceedings before me after that date. I have, for purposes of clarity in these Reasons, separated the claims of Namatulla and Obaidulla under separate headings.

I: THE CLAIMS OF NAMATULLA

1. Some background information

[4] Namatulla was born in India in July 1967. He emigrated from India in 1989 and is one of five brothers. In India, Namatulla did an apprenticeship in plumbing. The activities Namatulla says he enjoyed before the accident were soccer, swimming, cricket and games. Namatulla provided the Court with a number of photographs, which show him involved in various social and work-related activities before he came to Canada, as well as afterwards in Canada but before the accident. He was 23 years of age at the time of the accident.

[5] All the Hussaini brothers lived together with other family members. They are said to be a close-knit family.

[6] Namatulla received a Temporary Plumber’s Licence in Ontario in 1989. He obtained membership in a local union, which governs plumbers. The licence expires after one year and no proof was led to show that Namatulla ever renewed the licence or was ever fully qualified as a plumber at the time of the accident.

[7] Namatulla says that he opened up his own plumbing company, A-Z Heating and Plumbing around June, 1989. He says that he continued working at other jobs, even after he started up his own company. Namatulla says he employed his brothers, Obaidulla, Barkatulla and Basharatulla in his company and all worked for him.

[8] Namatulla was married in Toronto on June 26, 1989, “by telephone”, with his bride living in India. It was an arranged marriage. His wife, Syeda, did not come to Canada until 1993. Namatulla, on cross-examination, admitted that he had returned to India several times after the accident, with one stay being 5 to 6 months in duration. They now have 4 children, ranging in age from 12 to 5 years.

[9] Barkatulla, who was also injured in the accident, also went to India to get married. He claims never to have worked a day since the accident, as does Obaidulla. The only brother in the accident who has worked since then is Basharatulla.

2. The December 25, 1990 automobile accident

(a) Namatulla’s evidence

[10] None of the brothers involved in the accident could give a clear and accurate picture to the Court as to what actually happened at the time of the accident. Namatulla says that they had been grocery shopping and were returning home on the evening of December 25, 1990. They were proceeding north on Highway 27, having exited from Highway 427 and had passed Belfield Road when the accident occurred. Namatulla was driving the 1979 Pontiac Le Mans, with Obaidulla sitting next to him in the front seat. Namatulla says that Barkatulla was behind him in the back seat. All were said to be wearing seat belts.

[11] Namatulla says that the accident occurred around 8:00 p.m. to 8:30 p.m. There is no consensus as to the weather condition at that time. Namatulla explains that he was driving in the right lane heading north, with another car in the left lane behind him, which “suddenly” came beside his car and hit it on the driver’s side and “pushed our car”, hitting the driver’s front door, front light and tire. He claims that the other car was going “fast.” Namatulla’s evidence, over the years has changed about the speed he was driving, from about 75 to 80 k.p.h. to 90 k.p.h. at the time the accident occurred. Namatulla says he applied his brakes but the other car pushed them to the side of the road, when it hit them again on the backside. I asked Namatulla to draw a diagram of how the accident occurred but neither his oral explanation nor his diagram were clear, given the location of the damage on the car.

[12] Namatulla says that the other car was driven by the Defendant, Harjot Rita Bains (“Bains”) a woman who came from India and knew their language. He claims that Bains, after the accident occurred said, “I’m a new driver—I’m sorry for this...and I am driving someone else’s car...please do not call the police.” Bains’ evidence differs. Namatulla says that Bains said that she would pay for the damages but if the damage cost was quite a bit that she would have to contact the insurance company. The car belonged to the father of Bains’ brother-in-law, Jack Dhillon (“Dhillon”). Namatulla’s evidence is that

Bains and Dhillon gave him a cheque for \$600 plus \$100 cash to cover the damage to the car but said if it were not enough after he had received a quote about the damage, she would go the insurance company.

[13] Namatulla says that the police drove by but no one had called them. The police stopped, he said, but no accident report was filed by the police. Namatulla said this was because they told the officer that they would settle the claim themselves so he made no report.

[14] Namatulla says that the car was towed away. He remembers that a quote/estimate was given in the amount of \$3,500 and a claim was sent to State Farm. Obaidulla says the claim was \$4,000.00. They spoke to an adjuster, Bob Watson, ("Watson") who said the car was a "write-off". He recalls that the insurer paid them \$1,500 for the car.

[15] Pictures of the damaged car were entered as Exhibits by the insurer. Even these did not help Namatulla with his explanation as to how the accident occurred. On the evidence before me, the damage shown to the front driver's corner of the car could not have been done, if the accident occurred the way Namatulla described it as happening. He said that the driver's door was damaged but agrees that no such damage is shown in the insurer's photos. A copy of the Repair Estimate for damage done to the car was submitted and this was \$1,704. Beyene Auto Body examined the car and notes in its report where it estimates repairs dated January 23, 1991 at \$1,239.24, that, "Vehicle has prior damage." Obaidulla denies that this was so, when he was cross-examined about the accident. He had no explanation as to why there was no damage to the Dhillon vehicle, if the impact was what he and Namatulla said it was.

[16] On cross-examination about the accident, when questioned whether it was possible that the other vehicle was in the right-hand lane, as it entered Highway 27 from Belfield Road, Namatulla said no, and said that Bains must be lying, if she said that. The Defendant produced a set of 23 photos taken of the intersection, the traffic lights and traffic on the road, which show the merge lane that Bains says she used to enter Highway 27 from.

[17] Namatulla denies that the brothers walked with Bains to a telephone when she called Dhillon. He also denies that he and the other brothers drove her later to Dhillon's home after the accident. He says he only saw them when they came over soon after the accident to give the brothers the \$100 cash and a cheque for \$600.00. This evidence is contradicted by Bains and Dhillon. The cancelled cheque was produced in evidence, with Namatulla's signature endorsed on it and the date was December 27, 1990. Later he and Dhillon went together to the insurance agent because the money given to the brothers was not enough.

(b) The evidence of Mohammed Naser Kahn

[18] Mohammed Naser Khan ("Khan") gave evidence. He has known Namatulla since 1984 and says they are friends. Khan knows the other brothers as well.

[19] Khan says that he was called by someone, either Namatulla's brother or father, after the accident occurred on December 25, 1990. He says that he was told, "...it was a serious one", and could he come to the scene. Khan says he picked up one of the brothers and drove with him to the accident scene. He claims that Namatulla was lying against the steering wheel "with pain", when he arrived. This description is totally different from what actually took place, given that Namatulla had left the car at one point and walked to a nearby hotel to make phone calls. Khan also said that, "...the man could not speak," which we know is not so, since there is no evidence Namatulla lost consciousness.

[20] Khan says that he observed the left side of the car and saw that the left door was "totally damaged", that the glass was cracked and broken and the left-side fender and car were "pushed inside". This evidence is completely contradictory to what the photographs of the car show. He claims that they could not open either door, yet by this time, all the brothers had exited the car.

[21] Khan says he later drove the brothers home, two at a time. He says he saw the other car, which, "...was touching Namatulla's car." Again, this description does not agree with the other evidence before me about the location of the Dhillon vehicle. Khan provided the Court with a diagram of where the two cars were after the accident, which makes no sense.

[22] It is also Khan's evidence that Namatulla and the brothers did work for him at various times and at various properties he owned. Khan says he always paid cash, for work done. Khan claims to have received receipts but he says he never saw a business card, never saw an ad for A-Z Plumbing Services Ltd., yet he claims to have referred many friends to Namatulla, who only had a temporary plumber's licence.

[23] I find Kan's evidence about the brothers' injuries and the damage to the car, to be rehearsed and not accurate at all. I therefore discount his evidence about what work was done for him and what he paid for it.

(c) The Evidence of Jagtar (Jack) Dhillon

[24] Jack Dhillon ("Dhillon") is a self-employed businessman and the brother-in-law of Bains. Bains was the driver of Dhillon's father's car, which was involved in the 1990 accident with the Hussaini car. Dhillon says Bains telephoned him from a pay phone in a hotel on Belfield Road, after the accident occurred. His evidence is that Bains told him that no one was hurt in the accident and that there was no damage done to his father's car in the accident and not much damage to the other car. He says that Bains told him she had no money with her and the people in the other car wanted her to give them money.

[25] It is Dhillon's evidence, which I accept, that three Hussaini brothers drove to his home with Bains, after the accident, to discuss the matter with him. He correctly remembers the Hussaini car as being an old Pontiac Le Mans. He says he asked them if anyone was hurt and says they told him no. Dhillon drove to the accident scene and confirms that there was both a tow truck and a police car at the side of the road. Dhillon says it was the Hussaini brothers, not his sister-in-law, who did not want to get the police

involved. He says they did not want to get out of their car when they arrived back at the scene. He confirms that the fourth brother was at the scene when they arrived there.

[26] Dhillon says that the police wanted to know who was driving the car and he explained to the police about the negotiated settlement. He says the Officer asked who was hurt and, "We said no one." No police report was taken, says Dhillon and he did not get the badge number of the officer.

[27] Dhillon says when the Hussaini brothers came to his home with Bains, they told him that they wanted to get their car fixed. He wrote a cheque for \$600 and gave them \$100 cash, he says. His recollection about the damage to the Hussaini car is that there was "no major damage to it", and that he saw that the rear-bumper was pushed in on the right-hand side of the car. On cross-examination, Dhillon says that the brothers were in no way injured that he could see and none complained about pain when he saw them.

[28] The photographs of Namatulla's car were put to Dhillon, who says he had never seen them before. When he looked at the damage to the car, he says that there was no damage to the driver's side when he saw the car after the accident. He also says that when he went to the Hussaini home about a week and a half later, he noticed that the windshield had a large crack on it, but had not been cracked when he saw the car after the accident. It should also be noted that there were no cracks or damage to the windshield of the Hussaini car in the pictures taken and produced at trial.

[29] Dhillon says he next met the brothers when they came to his house to say that the money was not sufficient to cover the damage to their car. They wanted more money. He says he told them there was no more money and they would have to contact the Insurer. He gave them the insurance data needed about his father's car and Bains' driver information. The next day, Dhillon says he called the body shop and was told that the car was not worth repairing.

[30] Dhillon says he saw the Hussainis again, within a 3 to 4 week period, and noticed that their damaged car was still in their driveway with the windshield now cracked. He says he gave them insurance information and asked for the return of his money. They told him, they would have to go to the insurance agent. Dhillon went to his insurer, State Farm (the "Insurer"), and says that the brothers got an insurance form. The Insurer asked for pictures of his father's car, and these are exhibits. No damage can be seen to the Dhillon car in the picture.

[31] In cross-examination, Dhillon confirmed that he had given the name of Rocco's body shop to the Hussainis and that he had later called the shop and learned that the car was a write-off. Dhillon was an extremely credible witness and I accept his version of what took place after the accident, and what observations he had about the damage done to both of the cars in the accident. His observations were confirmed by Bains' evidence, as the driver of the car.

(d) The evidence of Rita Bains Shergill

[32] Rita Bains Shergill (“Bains”) was the driver of the vehicle involved in the 1990 Hussaini accident. She is now 36 years of age and married two years after the accident. She confirms that her name was Sargop Juar Bains prior to her marriage. Bains describes the weather as being “snowy and wet” the night of the accident. This is what the Hussainis and Dhillon all said. Bains says that she moved onto Highway 27 at Belfield Road and was on the inside lane about 5 feet from the intersection when the accident happened. Bains says she was a new driver, had been visiting her Aunt and Uncle, and they lent the car to her to go home.

[33] It is Bains’ evidence that she made a right-hand turn north from Belfield and entered the right-hand lane when the accident happened. She was at no time in the left-hand lane, as the Hussainis say. Bains says she was changing lanes when the car came from behind in the left lane and her car hit the other car’s bumper at the back of the car. She estimates that she was going about 45 k.p.h. She says that her car was just over the dividing line between the two lanes when the accident happened and the only part of the Hussaini car she hit was the back bumper. It was one hit, she says and a moderate impact. She put the brakes on and stopped on the side of the road. She says that she could see an impression on the bumper of the Hussaini car, as it stopped on an angle on the road in front of her.

[34] It is Bains’ evidence that 3 of the Hussaini brothers exited from their car before she did. They asked her what happened, she says, and she told them she thought it was slippery. She says they asked if she was going to get their car fixed and she said she would. She said to bring their car to her mechanic the next day but says they told her it was a holiday, and then began demanding money. They asked for \$300 to \$400 cash, and she says she told them that she did not even have \$100 cash with her. Bains says she wanted to call the police but the Hussainis did not. The Dhillon car was not damaged, Bains says, but the Hussaini bumper was a “little loose” she thought.

[35] Bains was shown the photos of the Hussaini car, never having seen them before. It is her evidence that the damage shown on the car in the photos is not consistent with what she saw after the accident. She confirms that the only area her car hit the Hussaini car was on the side of the back bumper. On cross-examination, Bains was shown Namatulla’s diagram of the accident and she was asked if this was what had happened. Bains emphatically denies that this was how the accident occurred.

[36] Two of the brothers walked with her to the Holiday Inn, a few minutes away, says Bains so she could call Dhillon. She says she told him she was not injured, and let the two brothers speak to him. She says she told Dhillon that his father’s car was driveable. They returned to the accident site, and Bains says she told the brothers she was scared to drive the car, so they drove her to Dhillon’s in their car.

[37] Bains confirms Dhillon’s evidence that there was no real damage done to the Hussaini car. She also confirms that Dhillon gave the brothers \$100 cash, which was all they had, plus a cheque for \$600. They then returned to the scene of the accident, noting

that the police were there but she did not speak to them. When Bains was asked if the Hussainis were injured in the accident, she says she did not see any injuries and she denies that they ever told her they were.

[38] Bains confirms that the brothers called about a month later to get her driver's information, although she had given it to them at the time of the accident. She also says she heard from one of them, she thinks it was the driver, about 5 months later, and they asked for more money. Bains wrote a reply to Namatulla, which is in evidence, stating she did not want to pay any more and that she knew they had gone to the insurer, State Farm. In her letter, Bains says, "I have been (sic) contact with lawyer, he said this is illegal this is called "Fraud".. you can't get money from both sides. I would like you to return my \$700...". We know that the Hussaini brothers paid no attention to this letter and the money was never returned to Bains or Dhillon..

[39] As can be seen from this evidence, Bains and Dhillon have quite a different story about the accident, what the damage to the cars was, and what the Hussaini brothers were like after the accident. There was no mention by Bains of anyone being dragged out of the car, of anyone being unconscious, of anyone showing any signs of injury at all. Where Bains' evidence and that of Dhillon differs from the evidence given by Namatulla and Obaidulla, I prefer the evidence of Bains and Dhillon.

(e) Namatulla's Injuries

[40] Namatulla says he is unsure what part of him hit the steering wheel in the accident. On cross-examination, Namatulla said that he hit the driver's door after he was "jerked back and forward." He claims that he hurt his neck and shoulder, and says for a while, "I was not in my senses and I was agitated." Namatulla says that the driver's door would not open and he was helped out of the right front door of the car by Obaidulla, who got out first.

[41] Namatulla says that there was swelling in his neck/shoulder area so when he got home, he used a heating pad, and applied ground tumeric to the sore area. He says that about a week after the accident he had a little internal chest bleeding, which started and stopped but kept bleeding every year until his lung was removed.

[42] Namatulla did not go to an emergency ward in a hospital after the accident. He did attend on Dr. Chen on December 29, 1990 and told him about the accident. He claims that X-rays were taken and that they showed "a fault" in the neck, that is, some problem with the C4/5 disc. He says that he told Dr. Chen about the bleeding in his chest. Dr. Chen, referred him to get a collar and referred him to a chiropractor, Dr. John Lam, who began seeing him 3 times per week. It is Namatulla's evidence that he wore the collar most of the time, as he says he was in quite a bit of pain when he walked. Dr. Chen prescribed several medications.

[43] In March, 1991, Dr. Chen referred Namatulla to Dr. Roscoe, an orthopedic surgeon. He was examined by Dr. Roscoe and was referred by him to St. Joseph's Hospital for physiotherapy three times per week. Namatulla says that this helped

somewhat but that the pain in the neck kept getting worse and he had difficulty eating. Namatulla agreed that Dr. Roscoe told him to get rid of the neck collar but he did not do so. He also agreed that Dr. Roscoe told him to do exercises but he did not do any.

[44] Dr. Roscoe notes, in his clinical records, that Namatulla stopped getting physiotherapy because he said it did not help him. He also notes that Namatulla's range of motion is "virtually nil." He notes that the x-rays were normal, and on March 28, 1991, Dr. Roscoe states, "I do not believe further tests or investigations are required." On April 25, 1991, he states, "There are no neurological deficiencies." On June 20, 1991, Dr. Roscoe's notes say, "I really gave him a stern talking to today, and told him that he must get going on a more motivated rehabilitation program. He should decrease his analgesic use." On August 22, 1991, Dr. Roscoe writes, "His present perceived disability outweighs his objective findings, and I think that there is a significant amount of exaggeration to his symptoms." In my view, these comments are striking, significant and compelling, given the medical history of Namatulla over the next 13 years.

(f) Namatulla's 1990 Claims for Accident Benefits and his work history

[45] About one week after the accident, Namatulla applied for Accident Benefits. Watson, the adjuster, came to the home and Namatulla filled out a form. Dr. Chen filled out the disability form. An employer's form was also filled out by a company Namatulla claims to have been working for at the time of the accident. He began receiving \$515 per week.

[46] On cross-examination, Namatulla admits that he put on his form for Benefits, that he had been paid \$945 gross per week from an employer called Sayers. There was no evidence to prove this amount as having been Namatulla's pay. He agrees that Watson called and asked for more information about Namatulla's self-employment and income tax. He did not give it. State Farm's Brief of Correspondence was put into evidence. The assessment of the claim by the Insurer shows that they accepted a figure of \$515 per week, after a partial denial was made it was adjusted down on April 4, 1991 to \$388.44 per week. The Insurer then stopped the payments after in May 1991, based on the recent medical evidence that Namatulla could return to work.

[47] After the benefits ceased, Namatulla wrote to State Farm and it again, attempted to get further medical evidence from Dr. Chen. It was not forthcoming. A lawsuit was then commenced by Namatulla against State Farm.

[48] Namatulla applied for welfare in June or July and began receiving \$700 per month from welfare. He later went on government disability and still receives these payments in 2005.

[49] Namatulla says that on January 9, 1989, he received his Provisional Plumber's certificate and became a member of the Pipe Fitters and Plumbing Union, Local 46. He worked at Russet Plumbing and P & B Plumbing for a few days for P & B. as well as Fanone Plumbing Mechanical Contracting Ltd., Gjehub Mechanical Contractors Ltd., and Sayers & Associates Limited from October 10 to November 11, 1989, earning \$4,034.00,

prior to the accident. His earnings were sporadic. In 1990, Namatulla worked for Niagara Mechanical contractors and earned \$24.97 per hour. Namatulla says he was there for two weeks.

[50] During this periodic work period, Namatulla registered his own business, A-Z Plumbing (“A-Z”) on June 14, 1989. He claims to have worked there on weekends and nights in addition to the other work he did. He says that Obaidulla, Barkatulla and Basharatulla also began working with him in this company.

[51] By this time, says Namatulla, his A-Z company was getting a lot of work orders and good contacts. The problem is, there are no independent records showing this to have been the case. When he was cross-examined on how he employed his brothers and how often they worked for him, I found his answers to be vague. I do not find Namatulla’s evidence that the company got new contracts almost daily, to have any ring of truth to it. The only one who had any qualifications as a plumber was Namatulla, and his licence was a temporary one. He would therefore have been required to be present for every job. There is no evidence that Namatulla had any qualifications in Canada to train apprentices in plumbing. I find that all his other brothers were unskilled labour at best.

[52] Produced at Trial is the employment record of Obaidulla with Namatulla’s signature on it, showing that Obaidulla started on July 2, 1989 and last worked on December 25, 1990, as a “helper”, earning \$530 per week for a total of \$9,805. There are no employment records to support this form, no cancelled cheques for payment of wages, and no bankbooks showing cash deposits to support this income figure.

[53] On day 5 of the Trial, while Barkatulla was still making a claim for accident benefits, Namatulla was examined by Barkatulla’s counsel. Namatulla says he employed Barkatulla during part of 1989 and 1990, paying him \$12 per hour as “my Assistant”. Namatulla has no records to prove that Barkatulla worked in 1989 for him. He said a few minutes later in his examination that Barkatulla was paid between \$8 to \$12 per hour in 1989 and 1990, working 8 to 12 hours per week. When examined by Barkatulla’s counsel, he said that his signature appeared on the Record of Employment form showing that Barkatulla earned \$530 per week. There is also a letter dated December 22, 1990 with Namatulla’s signature on it as the employer stating that Barkatulla earned \$28,810 in 1990 working full-time. He says Barkatulla requested this letter but he did not know why. Barkatulla, however, made out his own Accident Benefits Claim after the accident and he conveniently had this letter. He says both Barkatulla and Obaidulla were able to work on their own by mid 1990, yet neither had any formal training as plumbers. I therefore do not accept this evidence as truthful.

[54] Namatulla produced, in evidence, copies of various receipts for work done by his company, starting January 18, 1990 through to December 1990, being the time of the accident. They are in various names and all are mainly over \$1,000, in amount, with some as high as \$29,500. The company, however, kept no time dockets for the employees, kept no ledgers for tax purposes, kept no invoices or estimates and no records of any sort except these so-called receipts. Namatulla says that he gave a receipt when the job was done and he received full payment. He claims to have lost some of the job

orders and the account books, and as well as any receipts from suppliers like Home Depot.

[55] Namatulla could not say, in his evidence, whether these receipts represented all jobs, or just a percentage of work done. He then guessed that they represented 70-75 %. I find none of his evidence to be at all convincing on how the company operated or what truly represents its real income. Namatulla concedes that he did not deduct CPP or EI or income tax from any of his brothers' incomes, other than that of Basharatulla and there is no evidence of this.

[56] When asked why he created an employment record for Obaidulla, Namatulla says that Obaidulla asked for it. There is no evidence that Obaidulla was ever an employee of A-Z or later of "SN, Plumbing", as there were no deductions and no tax remittance to CRA. He was evasive in his answers as to whether the document was created to help Obaidulla collect EI after the accident. He claims Obaidulla prepared it from the "records" but there is no evidence of any such records, and I conclude that all of these Employer Records were fabricated, after-the-fact, for purposes of Accident Benefits, given the total lack of supporting documentation.

[57] An Employer form was also filled out for Barkatulla, with the same date of December 26, 1990. Namatulla's evidence about this was also evasive. He could not remember whether the two other brothers came to him together to get the forms and claims he lost all his records, which he had previously kept in his living room. He claims he made up a new record for the adjuster, Watson, to use in their accident claims. All of Namatulla's evidence on cross-examination about these records, made no logical sense and I cannot accept any of it as truthful. I conclude that all of these Employer forms were false, as produced.

[58] In 1989, Namatulla's Income Tax Return shows income of \$7,834. In 1990, he originally filed a Return showing income of \$6457, which included income from A-Z as \$958.34. There is a Statement of Income and Expenses added to the Return, which Namatulla says was prepared by H&R Block for him. This Return generated a refund to him of \$1,189.53.

[59] Namatulla's Notice of Assessment for his 1990 Re-Filed Income Tax Return shows an income of \$26,316, with tax owing of \$4,183.74, which he never paid. When he was cross-examined on what records he used to base this income on and that of the brothers, he could give no straightforward answer.

[60] Namatulla spoke of records being lost, how he saw Barkatulla's book and diary and how he came to his evidence that he paid \$1,810 in salary to the brothers each week. He says he paid them out of profit on the contracts, yet there is no evidence of any contracts at all, only receipts for work allegedly done. He has no copies of the flyers he claims he put out in the community, no copy of the business cards he said he had. Simply put, Namatulla had no evidence of how the business operated at all.

[61] Namatulla was also carefully cross-examined on the work that was shown on various receipts produced. He claims to have had no contact with any of these persons after the accident, who supposedly contracted with A-Z to renovations and plumbing before the accident happened. Some of the names on the receipts were repeated two or more times and none of the work done was a simple job. He claims to have worked on a hotel, a meat shop, on new houses, with extensive work being done. Namatulla claims, however, that all receipts for small jobs were lost. He got very agitated on cross-examination when he was asked how he could do 4 or 5 jobs at the same, as Receipts #65163 to 66 show.

[62] Namatulla also claims they worked Christmas Day. He also says that they used a rental truck, but cannot remember the name of the company they rented it from. None of Namatulla's explanation about the Christmas Day job and the work he and his brothers allege they did that day had a ring of truth to it. I infer that this whole story of work on Christmas Day is fabricated.

[63] On the evidence before me, A-Z was not a profitable company in 1989. Namatulla was asked how it then came to be so profitable in 1990. He thinks it earned about \$200,000 in 1990 and had net income of about \$58,000. From the lack of records and tax returns, I make another inference this was not so. No written estimates of what the jobs would cost were produced. No job was ever paid for in any manner other than by cash. This also is not believable, given the way any ordinary business is conducted. Receipt numbers in the data produced were also not always in chronological order by date for work done.

(g) The Evidence of Robert J. Watson

[64] Robert J. Watson ("Watson") is the State Farm Claims' Adjuster who handled the Hussaini file when the brothers made their Accident Benefits' Claims after the 1990 accident. He says that the policyholder was "Syed S. Hussaini", who we know to be Namatulla. The State Farm file shows that all 4 brothers who were in the accident made claims. It is Watson's evidence that he first contacted Namatulla on January 4, 1991, to inform him that his claim required more information. He confirms that Namatulla listed himself as a "plumber" on the forms sent to him. A package of forms is given to a claimant, says Watson. Namatulla's form was received around January 21, 2001 and that of Dr. Chen around the same time, diagnosing "neck strain". The second form was filled out by Dr. Chen on August 19, 1991, and he diagnosed 'Whiplash'. These diagnoses are very important, in light of the complaints by Namatulla over the next 13 years, since he claims never to have recovered.

[65] Watson's file had all of the same information before me about the benefits paid, when the benefits stopped being paid, and information regarding Namatulla's income. Although Namatulla was asked for additional income information and copies of tax returns, it was not received by the insurer, says Watson. Namatulla also did not respond to Watson's phone call of May 7, 1991, asking for information. He tried to get information from Dr. Roscoe and Dr. Chen but neither would release it without

Namatulla's written consent. A report was finally received from Dr. Chen on August, 1992, after the benefits had ceased being paid.

[66] Since the Insurer could get no information from Dr. Roscoe, it asked Dr. Langer to do another examination and report in 1993. In estimating the value of the damage to the Hussaini car, State Farm says the total loss was worth \$1,239.14. While another estimate was somewhat more than this amount, it says that there was prior damage to the car before the current damage. The car was examined by the insurer on January 23, 1991. The Hussainis settled for \$1,500 to be paid by the insurer and kept the \$700 from Dhillon and Bains.

(h) The Evidence of Robert Delaney

[67] Robert Delaney ("Delaney") is a Chartered Accountant, who says he specializes in business matters and estates. He prepared an income Report dated June 24, 2004 at Namatulla's request. He did not know Namatulla personally.

[68] Delaney says he reviewed Namatulla's income tax date and CCRA's employee source deduction account statements for A-Z. Only during July, September and October 1990, were there any remittance statements for \$484.58. Based on the so-called "Receipts" that Namatulla produced for A-Z in 1999, Delaney says the loss of income is calculated at \$103,053. He simply adds the numbers on the "Receipts" given to him. Delaney admits he noticed that Namatulla's 1989 income was only \$11,894.

[69] Delaney states that he calculated past loss of income on Namatulla's Niagara Mechanical \$655 per week at \$459,975. He then projected Namatulla's future loss of income on this to age 58. He then did projections based on three rates of discount, being 2 ½%, 1 ½ % and ½%, coming up with the three numbers \$692,534, \$763,525 and \$484,881.

[70] On cross-examination, Delaney admits that he assumes everything he was told was true, which it was not. He assumes that Namatulla will never work again, and that his income would remain at the 1990 figure for A-Z. He did not use Namatulla's T4A for 1990 at \$58,700 as it was not reported. He agrees, however, that if all employees were paid in cash, there would be no EI paid and no employment record. He agrees that he never spoke to Namatulla, relied on some receipts provided to him by Namatulla's counsel. He had no real evidence on which to base his projection, and agrees that there are no records to show that the brothers were paid \$78,000, and had no written verification by way of cancelled cheques, contracts or bank deposits to prove income.

[71] In my view, Delaney was duped into producing a Report that was of absolutely no value to the Court, since there was no true accounting records to support any of the figures. The so-called Receipts and Repair Orders produced by Namatulla make no true business sense at all, without any supporting records, all allegedly having been lost. On the evidence before me regarding A-Z Plumbing, I conclude that Namatulla's true income in 1990 was that which he first reported, and not that which he and his brothers manufactured, after-the-fact, to collect Accident Benefits.

(i) Namatulla's Claim for Pain and Suffering

(i) The Neck problem

[72] Namatulla complained of neck problems after the 1990 accident, and wore a neck collar for years, although medical reports said that his stiffness was exaggerated. Dr. Chen also told him to try removing the collar. The reports of Dr. Roscoe and Dr. Virgin show that he did not move his neck at all, when examined by them. It is the Defendants' position that Namatulla exaggerated his neck point throughout the years in order to try to keep his Accident Benefits.

(ii) The Lung and Chest Complaints

[73] Dr. Chen's clinical notes and records show that Namatulla was coughing up blood before the accident. He was then referred by Dr. Chen to Dr. Sarin, whose report of November 2, 1989, prior to the accident, states that there had been a foreign body of vegetable origin removed from Namatulla's lower left lobe bronchus when he was a child. North York General Hospital records show that Namatulla complained about coughing up blood in 1992. In 1993, Dr. Sarin told him his lungs were damaged. By 1995, Dr. Rodrigues said that the CAT scan showed gross bronchiectosis. He saw Dr. Yemen further about the lung problem and the lesions were finally removed by Dr. Perera in 1999. I am satisfied on the medical evidence before me that none of Namatulla's lung problems were in any way related to the 1990 accident or subsequent accident. They pre-dated the accident and were caused by his early ingestion of foreign matter in the lung when he was a child.

[74] Namatulla's evidence given to various specialists that the car was hit on the left side and it knocked into his left side and had some chest bleeding after that, is false. I find that any bleeding Namatulla had, related to his pre-accident lung condition.

(j) The Evidence of Family Doctors

(i) The Evidence of Dr. Chen

[75] Dr. Chen is Namatulla's first family doctor. He treated Namatulla both before and after the 1990 accident. He was called as a witness at Trial and had his transcribed Clinical Notes and Records for the Court. After the accident, Dr. Chen notes that Namatulla complained about his head and shoulders, which he held stiffly. Dr. Chen says that Namatulla "yelled", when asked to move them. The X-rays taken by Dr. Chen show no breaks but did show that there was already degeneration of the C6-7 disc area of the spine. Dr. Chen says that the accident could worsen this condition. It is common in 50% of the population, says Dr. Chen.

[76] Reference is made throughout these Reasons to the various other doctors who Dr. Chen referred Namatulla to. His constant complaints about neck and back pain caused Dr. Chen to issue many prescriptions to Namatulla within the first month of treatment after the accident, including Robaxacol, Tylenol 3 (he was receiving more than 50 tablets per month of it), Norflex (a muscle relaxant of which he received over 50 tablets per month), Surgam (an anti-inflammatory), Naprosyn, Naproxen (sometimes as many as 120 tablets per month) and Flexeril. He later prescribed Halcyon and Dakion. The number of prescriptions prescribed by Dr. Chen for Namatulla over the years until 2004 is staggering. All such drugs are confirmed in the prescription records in evidence. He has seen Namatulla constantly since the accident and estimates that there have been over 200 visits by Namatulla to his office over the years.

[77] At one point, Dr. Chen diagnosed Namatulla as having an anxiety neurosis. Dr. Chen referred Namatulla many different specialists over the years. There is no medical evidence that any of them helped alleviate Namatulla's complaints.

[78] Dr. Chen said Namatulla had neck strain. By chance, Dr. Chen began observing Namatulla on an office monitor installed to protect his medical premises. His Notes in October 1997 state that although Namatulla would limp when he came to his office, he could walk without a limp. He was told by Dr. Chen to go back to work but did not do so. He noted also that Namatulla could walk easily, turn his head and the stiffness appeared to be gone from the neck.

[79] By 1996, Dr. Chen concedes that he did not believe Namatulla's litany of symptoms. He agrees that there never was any fracture of Namatulla's ribs in the accident. He never noticed any bruising on the body after the accident. He says that Namatulla did not complain to him that he had a contusion to his chest after the accident, nor did he complain of shoulder pain.

[80] When asked on cross-examination how it is that a person can have neck spasm for 6 years, Dr. Chen's evidence is that a person could not, unless "they monkey around." Dr. Chen also agreed, on cross-examination, that there was some evidence that Namatulla was even "monkeying around" in 1991, as well as in 1996.

[81] Dr. Chen says that he sent Namatulla to see Dr. Kachooie in February, 2002 at Namatulla's request. Dr. Kachooie also was given a false history by Namatulla about the 1990 accident, and Dr. Chen confirmed this. Further, Dr. Chen agreed that small problems with a herniated disc at C4/5 and C7/T1 areas of the spine did not mean anything in Namatulla's case, although they showed up on an MRI. Dr. Chen says that this could be caused by degeneration of the disc.

[82] Dr. Chen's evidence is that Namatulla never told him that he was seeing the other family doctors, namely Dr. Mohammed, Dr. Yeung and Dr. Purewal. Namatulla did not tell Dr. Chen about the other drug prescriptions he received at the same time from these other doctors, while Dr. Chen was prescribing some of the same drugs for him, nor did he tell Dr. Chen about his other two later car accidents. This evidence shows the lengths Namatulla went to, to obtain both Accident Benefits and prescription drugs.

(ii) Evidence of Dr. Mohammed

[83] Namatulla went to see Dr. Mohammed, another family physician in March 1996, while he still was seeing Dr. Chen. Both doctors saw him on the same day. Dr. Mohammed examined Namatulla two weeks after his second accident. Namatulla told him that he had been in hospital for two days after the accident, that he injured his knee, had shoulder pain, neck pain and back pain and had trouble sleeping. Dr. Mohammed also prescribed Naprosyn and Flexeril, two drugs already being taken by Namatulla.

[84] Namatulla says he told Dr. Mohammed about the first accident after about 4 or 5 visits with him. Dr. Mohammed's notes, however, show that it was 10 months after the second accident before he learned of the first accident. I accept Dr. Mohammed's notes as showing the correct date.

[85] Dr. Mohammed says that Namatulla showed little flexion either forward or laterally and no backwards flexion at all when he first saw him. Namatulla's gait was still very stiff after all these years. He was supposed to attend a pain clinic, but Dr. Mohammed has no record of him doing so.

[86] Namatulla says he told Dr. Mohammed that he was a plumber who had not worked for 4 or 5 years. He told Dr. Mohammed that he was on Social Assistance, and in 1998, Dr. Mohammed filled out the COMSOC Medical Report for him. He was referred by Dr. Mohammed to Dr. Mehta for his neck pain and to Dr. Berbrayer for rehabilitation assessment. Dr. Berbrayer saw him 8 times over three years and sent Reports each time to Dr. Mohammed. He reports that Namatulla went for a four-week assessment at the Canadian Back Institute and did "not do well" during that period. He confirms in his September 30, 1997 Report that there was congenital cervical spinal stenosis and a small disc bulge at C4/5 which did not cause any cord compression.

[87] Namatulla claims that the second accident aggravated the back and neck problems he had from the first accident. When asked on cross-examination what he did with all this medicine received from various doctors, Namatulla claims he took it all. I find this evidence to be totally without credibility, given the huge quantum of drugs prescribed by the overlapping doctors.

[88] In July, 1997, an MRI was taken by Dr. Berbrayer. The Dr.'s report says that his overall impression is that Namatulla had congenital spinal stenosis. Namatulla says that it was caused by the accident but there is nothing in the report that says this. It was not until April, 1998, that Namatulla says he might have told Dr. Berbrayer about the first accident. At this point, Namatulla is still complaining about the pain in his neck, low back, right knee and left shoulder, and still at times wore his collar.

[89] From that time forth, Dr. Mohammed says that Namatulla continued to complain of a stiff neck and he never has improved over all the time he has seen him as a patient. At the present time, Namatulla continues to see both Dr. Chen and Dr. Mohammed.

(k) The Evidence of Dr. Fred Langer

[90] Dr. Fred Langer (“Dr. Langer”) gave evidence. He has been an orthopaedic surgeon since 1969 and stopped operating in 1994, when he began his practice of medical/legal consultation. He says that he does 80% of his work for defence lawyers and has testified in Court many times about these types of soft tissue injuries that the Hussaini brothers complained of. He was asked by the insurer to examine all three brothers and to provide a Report for each. It was Dr. Langer’s findings, in his Report, that caused the Insurer to stop paying Accident Benefits to them.

[91] Dr. Langer first saw Namatulla on May 7, 1991, at the request of the Insurer by way of a letter of direction. Dr. Langer does not have a copy of his Notes of the examination of Namatulla, as he thinks his former secretary may have destroyed those in 1998. He does, however, have his Reports made in 1991, 1993 and 2004. His first Report is dated May 18, 1991 and includes the historical material that was given to him by Namatulla about himself and the accident. Dr. Langer’s Report says that Namatulla told him he was going about 65 kph when the accident occurred. This is the third different speed that Namatulla has reported to various persons. He did not tell Dr. Langer that he had struck anything in the inside of the car. He recounted his attendance on Dr. Chen and spoke of his physiotherapy treatments.

[92] Dr. Langer saw that Namatulla was wearing the soft collar around his neck, when he attended for his examination. Dr. Langer did a physical examination first and says that Namatulla continually held his neck rigid, that he held his head when he got off the examination table, and he avoided moving his head. He did, however, rotate his neck on examination, without any apparent abnormality. It is Dr. Langer’s evidence that he found no tenderness or spasm in the neck, but explained that this would be normal since it was several months after the accident when Namatulla was examined. He said that if a person holds his or her head stiffly and refuses to move it, the tension may cause muscle problems. Muscle spasm, says Dr. Langer, is ordinarily a protective process for the body to protect the painful area. The body, says Dr. Langer, can do this internally if the person causes the muscles to contract by rigidly holding the area of damage without movement.

[93] Dr. Langer says he notice that Namatulla had some degeneration in his discs but there was no herniation. If there had been a herniated disc, Dr. Langer says that Namatulla would have had radiating pain and perhaps numbness, with weakness of the extremity so-affected. Dr. Langer also says that if Namatulla had had a serious neck problem, one would have expected serious problems to appear within a few days of the accident, and this was not the case. It would have been clinically apparent within a month of the accident if there was a serious problem. There was no evidence of the soft part of the disc protruding, which would eventually happen if the disc was compromised. Dr. Langer says that one of these symptoms were present in his examination of Namatulla.

[94] Almost all disc herniations take place at the C5/C6 or C6/C7 level, says Dr. Langer. He also says that about 30% of CT Scans on normal people with no problems, at all, will show abnormalities. These are known as false positives. He also notes that

Namatulla had no signs of having had any fractures. He checked his walking, standing, walking on his toes and heels, bending, and checking for atrophy. There was no atrophy and there were no neurological abnormalities found. Dr. Langer says he concludes that Namatulla never suffered any serious injuries.

[95] We know that Namatulla says he had his seatbelt on when the accident occurs. Dr. Langer says it would have been difficult to have hit his head on the windshield under those circumstances. There was no evidence of bruising or swelling to the head in Dr. Chen's early Reports. Dr. Langer says that there was no evidence in Dr. Chen's report of inflammation in the area of the neck and back and no swelling or redness to the area, which one would have expected says Dr. Langer. He saw none either. Dr. Langer saw no evidence of any organic disease. The X-rays Dr. Langer saw showed no signs of abnormalities, he said. When he observed Namatulla leaving the examining room, he walked in a normal fashion with spontaneous movements, Dr. Langer said. While there were signs of rigidity of movement, Dr. Langer said it improved as Namatulla left. "I thought he had no signs of disability", Dr. Langer said. "I found nothing to prevent him from working", Dr. Langer concluded.

[96] When Dr. Langer was questioned about pain, he said it can be a response to something physical or non-physical or a combination of both factors. It is non-objective and some people have a greater response to it than others. On his examination of Namatulla, Dr. Langer said that he could find no cause for the pain Namatulla says he was experiencing. Namatulla's Accident Benefits were cut off after the First Report of Dr. Langer.

[97] Dr. Langer provided a second Report to the Insurer dated April 13, 1993. For this Report, Dr. Langer reviewed the report on the X-rays by Dr. Majesky, a letter from Dr. Chen dated August 17, 1992, and he examined Namatulla a second time. There was nothing, says Dr. Langer, to cause him to change his original opinion. Namatulla said to Dr. Langer that he was still experiencing the same symptoms he had previously. He still held himself rigidly. Dr. Langer says that Namatulla's joint movement became normal with distraction, that when tested with power, he gave way each time. Finally, Dr. Langer said when Namatulla left the office, "...he appeared to be normal." Dr. Langer had again tested him for neurological abnormalities and he found none. The X-rays also showed no abnormalities.

[98] When questioned about Namatulla's complaints about muscle spasm, Dr. Langer explained that there are no objective tests to prove what caused it or if it was involuntary or voluntary. He once again said, "It was my opinion that he was physically fit to work." He said he was also disturbed that the three brothers all presented with the same symptoms and he exhibited the same findings with all of them. He found none of them to be credible.

[99] Dr. Langer prepared a third Report for the insurer on July 4, 2004, without examining Namatulla. He reviewed other medical reports, including those of Dr. Vincent, Dr. Chen, Dr. Roscoe, Dr. Virgin, Dr. Bateman, Dr. Ross and the recent report of Dr. Kachooie. Dr. Langer said that given Namatulla's age of 23 at the time of the

accident, and in the absence of infections or any significant injuries in the past, one would not expect Namatulla to suffer all these symptoms from this type of accident. In my view, Dr. Langer looked carefully at all of the other doctors' Reports, given that Namatulla was still complaining of the same symptoms over 12 years since the first accident and 7 years since the second accident. Again, Dr. Langer said there was no reason Namatulla could not have returned to work. Again, Dr. Langer did not find Namatulla's presentation to be credible.

[100] Dr. Langer, in analyzing Dr. Kachooie's 2002 findings, that a whiplash injury could cause headaches later on, and that there was marked wasting of the left wrist senses, and some degeneration at the C6 level, says that there were no clinical findings to relate this to the 1995 accident and there was no evidence in 1993, on Namatulla's second examination to show that he had a continuing physical injury and no evidence of a permanent injury from the 1990 accident.

[101] On Cross-Examination, Dr. Langer admits that it is possible that a person could suffer some of these conditions from an accident, and that the person could have muscle spasm and that it could persist for a period of a year and that he could have intermittent pain. He also agrees that a motor vehicle accident can cause a ruptured disc in some persons and that one cannot, in X-rays or other scans, see nerve impingement that causes pain. I find, that on an overall analysis of the medical evidence presented and as analyzed by Dr. Langer, that Namatulla was able to return to work within the first year after the accident.

(I) The Evidence of Dr. Kachooie

[102] Dr. Kachooie is a Physiatrist and gave evidence. He received his original medical training in Iran and did neurosurgical training in London, Ontario, switching to physical medicine and rehabilitation. Dr. Kachooie is now involved in disability assessment and pain management and is an expert in Physiatry. It is his evidence that he first saw Namatulla on February 14, 2002, on a referral from Dr. Chen.

[103] Dr. Kachooie received yet a different description of the 1990 accident from Namatulla, who now claims his car was "hit broadside" by the Dhillon car, and says it was a very severe impact, which caused his chest to be "crushed" and caused him "to vomit blood". We know, from earlier evidence in the Trial, that this was a complete fabrication by Namatulla, who seems to fail to remember what he told his many doctors about the accident.

[104] Dr. Kachooie acknowledged being aware that Namatulla was treated by a number of other doctors over the years. Namatulla's description of his current pain in 2002 made it appear even more severe than it had been a year or two after the 1990 accident. He now complained of TMJ jaw pain, yet there were no active symptoms of this says Dr. Kachooie. While Namatulla's left side exhibited some pain irritation, Dr. Kachooie says Namatulla's right side "was quite normal". There did appear, however, he says, to be a rotator cuff problem, he had limited rotation in the spine but his hips and

knees were normal. He says he saw left C6 cervical radiculopathy, which could be caused by the spinal stenosis.

[105] Dr. Kachooie prescribed yet more drugs for Namatulla. He gave Namatulla soft tissue injections to block nerves. He ordered more tests, including another MRI and another CAT scan. He says the MRI showed some disc impingement at the C4/5 level of the spine and at the C7/T1 level, with the rest of the spine being quite normal. Dr. Kachooie says these are not surgical problems and can be treated by therapy. He relied on the radiologist's report in making his diagnoses. Again, after examining the CAT scan, Dr. Kachooie says that the lumbar issues can be treated with epidural steroid injections. He also ordered a Bone Scan, which showed some arthritis in the spine. A nerve study was done on the lower extremities and it was normal.

[106] Dr. Kachooie continues to see Namatulla in 2003 and 2004, for the same complaints. Although Dr. Kachooie says that while he encouraged Namatulla to be more active at home, there is no evidence to show that Namatulla followed that advice. Dr. Kachooie was unfortunately seeing Namatulla without having had the benefit of reviewing copies of all the many other doctors' reports about the 1990 accident and his treatment.

[107] Dr. Kachooie admits that spinal stenosis usually does not affect people until they get in their 50's or 60's. Namatulla, further, did not tell Dr. Kachooie about the second, which he had been involved in.

[108] Under cross-examination, Dr. Kachooie admitted that if the history he has received from a patient is wrong, the whole issue of causation of the symptoms can also be wrong. He also agreed that constant wearing of a neck collar causes muscle deterioration, and he did notice that Namatulla had constant neck stiffness.

(m) The Evidence of Dr. Ross

[109] Dr. Ross gave evidence. He is an Occupational and Organizational Psychiatrist. He says he has a special interest in pain management. He ran a Pain Clinic from 1980 to 1990. He saw all three Hussaini brothers on December 5, 1995. Dr. Ross prepared a Report for counsel for the law office of Paul Lee, dated January 26, 1996, in relation to the 1990 accident. He says that the brothers were able to move their heads by putting his hands on the side of their faces, and movement was spontaneous. He says, "Objectively, I was not moving them." He also observed them when they left his office and they were able to put on their coats without any physical difficulty.

[110] He asked about their sleep patterns, appetite, concentration, moods, memory functions and sexuality. None of them had complaints in these areas. He says he went over these functions a number of times just to make sure, and he says that they all had a presentation of a particular kind of accident, with pain of a particular kind.

[111] Dr. Ross gave evidence at Trial. He had diagnosed Namatulla as Malingering (DSM-IV 65.2), with gross discrepancies in his physical and psychological presentation.

He reviewed many of the reports of other doctors, including Dr. Chen, Dr. Majesky, Dr. Virgin and Dr. Langer. In his findings, Dr. Ross says:

Mr. Hussaini's mood was good and his affect was largely appropriate except insofar as he expressed no sadness when talking about the circumstances which, if they were true, would be expected to be accompanied by sadness. Memory and concentration were good.....In spite of his pain, Mr. Hussaini told me that his mental state was fine. Mr. Hussaini denied anxiety and laughed at the possibility that he might have crying spells.....He voluntarily moved his neck approximately 5 degrees in either direction. He did so with tremendous complaints about the pain this caused him and I noted obvious and voluntary bilateral neck muscle spasm. Mr. Hussaini's apparently tremendous limitation in his movement was in contrast to the obvious movements of 20 to 30 degrees in either direction which he spontaneously demonstrated during the course of our conversation.

[112] Dr. Ross says that he finds Namatulla to be "an insincere and unreliable informant." Throughout the time he spent with Namatulla, Dr. Ross says that Namatulla made every effort to convince him of his "suffering from immense, intense and ongoing pain which severely restricted his movement." This was in contrast to his attempts to show he was in good mental health. Dr. Ross is of the opinion that Namatulla attended the meeting "...with the conscious intention of producing false and grossly exaggerated physical symptoms." He says that all of this was done because Namatulla did not want to work.

[113] On cross-examination, Dr. Ross says that he observed Namatulla both in the examining room, where he restricted his movements, and at times when he said Namatulla did not know he observed him. On those times, he says that Namatulla had free movement. Dr. Ross says that he ran a pain clinic for 10 years, and is well able to diagnose that there were no emotional problems shown by Namatulla. He says, "I had a problem with his credibility...found no injury, no impairment and no disability." I accept Dr. Ross' diagnosis as accurate, in light of all the medical evidence before me that supports this.

(n) The Evidence of Dr. Schutz

[114] Dr. Schutz, a neurosurgeon, was asked to examine Namatulla and he saw him on January 26, 1996. He took a history from Namatulla, who told him he had not worked since December 25, 1990. When Namatulla's description of the accident was put to Dr. Schutz, such as how the car was hit, what injuries he suffered, how it caused him to cough up blood, how he fractured his ribs, Dr. Schutz said he had none of that information. Dr. Schutz noted that Namatulla was in poor physical shape, had poor muscle tone and a protruding abdomen. He says that Namatulla's mental and motor tests

were normal. He also says that Namatulla's exaggeration of his inability to move his neck or back was such that it real, he would not have been able to lift a cane. His diagnosis was that Namatulla had suffered nothing more than a soft tissue injury in the second accident. He says there was no objective basis for Namatulla's complaints, no disc herniation, no broken ribs. Namatulla also refused to move his neck when asked to do so by Dr. Schutz.

(o) The Drug Records and Prescriptions

[115] Namatulla's charts of various prescriptions from three drug stores were entered as evidence. None of these three drug stores/druggists seemed to be aware that Namatulla was receiving similar or the same medications from other doctors, including percocet, Tylenol 3, Celebrex, Naprosyn, and Norflex. There was no analysis of how these drugs affected Namatulla or why so many were prescribed at the same time. If there had been a Central Registry of a patient's prescriptions in place, each of the new doctors sought out by Namatulla would have known about the other doctor's prescriptions, as would the druggists. There, however, is no such Registry that I am aware of. I am of the view that there ought to be one to prevent over-prescription and an abuse of the system. There is no evidence led as to how all these drugs interacted, since nothing helped Namatulla's alleged symptoms.

(p) The Surveillance Tapes

[116] The Defendants' insurer arranged to have surveillance done in 1993, after the Accident Benefits had been cut off. Namatulla was still claiming to be totally disabled from the accident, was still wearing a collar and complaining of pain. Tape #1 is dated March 31, 1993. This Tape shows Namatulla walking in an easy manner with good shoulder movement. He is able to easily turn his head around in the car while backing out of a parking space. I observed Namatulla on the Tape, walking with no apparent pain, although he professed to get pain after doing ordinary tasks. He is shown to be freely moving about and able to move his neck with no apparent stiffness. In this tape, Namatulla, while driving the car with ease, makes 6 different stops where he gets in and out of the car, and fills his own gas tank with no apparent pain.

[117] Tape #2 was filmed on July 19, 1993. Namatulla appears on the tape wearing no collar, and is carrying a bag of groceries. Two of the brothers are with him. They are looking at papers. He managed, however, to keep his head bent down while reading and is shown turning his head easily without the collar. There is no impairment to his gait and his shoulders are relaxed. On that tape, he is later shown wearing a scarf and apparently attending at his lawyer's office. This time a brother is driving. He is later shown standing with his arm up on a telephone booth, later with hands behind his back and waving his arms easily, as a brother is on the telephone. He thinks it is Obaidulla, who is on the phone, and spoke for almost 12 minutes in a very animated conversation. The third brother leaves, and Namatulla and Obaidulla wait by the car, both very agile and neither seeming to be in any pain or discomfort.

[118] When Namatulla was cross-examined about these tapes, he said he could not remember the location, but agrees he sometimes made calls from a telephone booth. The tapes, in my view, are clear and positive evidence of Namatulla's ability to do the physical tasks he continually denies he can do.

3. Namatulla's 1996 Automobile Accident

[119] Namatulla was involved in a second automobile accident on March 13, 1996. He was a front-seat passenger in a car driven by his brother. They were hit by a driver making a left-hand turn, says Namatulla, which resulted in a T-bone collision on the front part of the car. Namatulla says he hit his right knee, right arm and right shoulder, and had more back pain. He went to Scarborough General Hospital after the accident, where X-rays were taken of his back, spending one night in the hospital.

[120] Namatulla admits that he applied for new Accident Benefits, using a new lawyer, and received \$300 per week for 7 months from Halifax Insurance. Halifax's file on Namatulla in that lawsuit was subpoenaed and was before me at Trial. Randy Waters ("Waters") was the adjuster on the file. When shown the 9 page outline dated May 29, 1996 prepared by Waters, Namatulla agreed that he had read the pages and that he signed the last page. He did not, however, tell Waters about the first accident.

[121] What Namatulla did tell Waters was that his wife was working full-time and that he was at home looking after the children at the time of the second accident. Given the evidence about the first accident, this was clearly not true. He now admits that this was false. He also told Waters that he had been able to lift the children before the second accident, but blames this untruth on the fact that "my English is not so good." He further told Waters that he changed the children's diapers and fed them and cleaned the bathroom once a week to help his wife, none of which was true in relation to his Claim for the first accident. I find all of this was done by Namatulla because he had to show Halifax that he was the primary caregiver of the children in order to receive the new Accident Benefits. He filled in the form for Halifax and signed it, showing this false information. He now says that Waters gave him the incorrect "caregiver" form. I do not accept this protestation as genuine. It is clear on the evidence that Namatulla was busily committing a fraud on Halifax in order to get new Accident Benefits.

[122] Dr. Mohammed completed a Health Practitioner's Certificate for Namatulla for the 1996 accident. He was not aware that Namatulla had been in a previous accident. The Canadian Back Institute did a report for Halifax dated April 11, 1996. It says that Namatulla's past medical history and general health is "good" and Namatulla denies that there were any previous neck problems, which is not true. Halifax eventually stopped making Accident Benefits payments to Namatulla when it found out about the previous accident.

[123] Halifax sent Namatulla to see Dr. Zeldin on October 22, 1996, and he took a past history from Namatulla that indicated that Namatulla had been in good health prior to the second accident and had no previous injuries. This also was not true. Dr. Zeldin, however, found that Namatulla to be was exaggerating his symptoms.

[124] In the trial before me, Namatulla was unable to explain how it was that he had told Waters these things that he did before the second accident, when he claimed that he was totally disabled from the first accident when talking to State Farm. Namatulla's lack of credibility shown in the State Farm Claim is magnified in the Halifax Claim.

4. Namatulla's 2003 Accident

[125] Namatulla was involved in a third accident on August 5, 2003, in which the car he was driving was rear-ended. In the car with Namatulla was Selin Fatima, his brother's wife, and his daughter and son. He says that he was not injured much in that accident. He went to see his third family practitioner, Dr. Yeung two weeks after this accident for those injuries. Dr. Yeung had been previously treating Namatulla, at the same time as Dr. Chen and Dr. Mohammed, treated him.

[126] Namatulla says that in this third accident he injured his right hip, both knees, both wrists and his back pain was limited. None of his shoulders, neck or chest was injured. He says he saw Dr. Yeung for 3 or 4 months for these injuries and was given blood pressure pills, Celebrex and more Tylenol 3.

[127] Namatulla says that he made another Accident Benefits Claim after his third accident. He says that his right hip got better, as did his wrists, after 4 to 6 months, and the file was finally closed. At Trial, Namatulla pulled out of his pocket a letter dated March 13, 2004 from an adjuster regarding this third accident. He says he got no benefits from this accident, except for having an occupational therapist come to his home. He says he was not paid because of the previous 2 accidents.

5. Overall medical analysis

[128] Only once in his evidence did Namatulla say that he was helped by any of the multitude of treatments he received from the many doctors and specialists he has seen the past 14 years. He wore the collar for 7 years, without allowing his neck muscles to gain strength without the support of the collar. He believes that the injections given to him by Dr. Kachooie have helped him "survive," although he says that the pain is getting "worse and worse and worse" in his neck, shoulder and back.

[129] Dr. Chen wrote to one of Namatulla's lawyers, Mr. Kacaba, on September 8, 1999, stating that he has seen Namatulla for almost 10 years about his neck, shoulder and lower back pain. He came to see Dr. Chen at least once per month over all that time. Dr. Chen says:

He came to office about once a month, and I noticed that he had no problem walking in and out of the office from a monitor in my office that connected to a video camera in the waiting room outside....I believe he should work gradually to improve himself slowly since 1996. Ten years of healing time for soft tissue is longer than usual.

[130] Namatulla still complains, in general about his pain and says that he is in worse conditions than he was right after the accident. He claims to have done “everything” in the way of housekeeping and domestic tasks before the 1990 accident and now he cannot help his wife with anything around the house. He can no longer participate in any sporting activities or in the children’s play activities. The surveillance tapes show this is not the case and that Namatulla has continued to exaggerate all his symptoms over the years.

[131] Namatulla made no attempts to re-train or up-grade himself, and there is no evidence before me that he even tried to renew his temporary plumber’s licence. His evidence is that he “can’t do anything.” He professes to have all the same complaints he had after the 1990 accident and says he cannot meet his wife’s expectations in any way. He says he feels, “weak inside.” On cross-examination, Namatulla says he could not return to work because of the pain, his sickness and his disability. On the evidence before me, I find Namatulla was fully recovered from the first accident within a year, and was able to return to work, as Dr. Langer said.

6. The Evidence of Other Witnesses

(a) Sunil Bhardwaj

[132] Sunil Bhardwaj (“Bhardwaj”) was called to give evidence. He is a chartered financial planner who came to Canada from India in 1985. He claims that Namatulla did work for him in 1990, as a handyman, contactor and plumber. He says “others” worked with Namatulla, yet was unsure if he had a company. He says the labour costs alone were \$8,000 plus the cost of the materials and fixtures. He claims he made a down payment on the job of 25% and paid all cash for the job but has no records of payments.

[133] When Bhardwaj was questioned on how he came to be a witness in this proceeding, he said that he had been approached by his friend Nazeer, who knew about the accident and Namatulla’s problems and he agreed to give evidence when asked to do so.

[134] On cross-examination, Bhardwaj acknowledged that he had no “piece of paper” to show that any work had been done or that any money had been paid to Namatulla or his company. When he was shown one of the so-called Receipts, Bhardwaj could not positively identify it as the type he had received. He claims to have received a business card and a written estimate from Namatulla, as well as Receipts, none of which he kept. I do not find Bhardwaj’s evidence to be very helpful or useful or very credible. It had a rehearsed quality to it and provided little help in determining whether A-Z Plumbing did the work Namatulla claimed it did.

(b) Syeda Hussaini

[135] Syeda Hussaini (“Syeda”) is Namatulla’s wife. She says that she and her husband met about 30 years ago in India. She confirms that they married “over the phone” while she was in India and he was here. She came to Canada in May 1993, two

and a half years after the 1990 accident. Syeda was told by Namatulla via a telephone call of the accident. Syeda says Namatulla visited her in India in 1992 but was “sick at that time.” He stayed there for 4 to 5 months, she says but recalls little about the visit or his health, except he told her his neck was in pain and stiff.

[136] Syeda says that she takes care of her husband and does everything for him. He does nothing, she says. She says she gets some help from the older children. She sees their social life as “none” but acknowledges that they sometimes see friends and relatives at parties or religious festivals.

[137] When Syeda was questioned about the family’s income, she says that the only time she did any work since coming to Canada was some sewing of women’s dresses at her home, for which she was paid about \$10 per dress, she says. Syeda confirms her husband’s evidence that they at first received Welfare/Social Assistance and now receive Disability Income through the government.

[138] It is Syeda’s evidence that her husband suffers from numbness, has problems walking, and is in a lot of pain, including neck, chest and shoulder pain. In her view, his condition seems to just get worse and worse. She seems to think that her husband damaged his lung in the accident, but the medical evidence shows otherwise.

[139] Syeda says that her husband has never tried to return to work, even once. She acknowledges that he has tried therapy but says this does not work. She also is aware of the later two accidents her husband has been involved with.

[140] When Syeda was questioned as to how she and her husband purchased their home for \$195,000, she says that Basharatulla, her brother-in-law helped, with a 5% down payment, which is approximately \$9,750. She says she and Namatulla contributed nothing to the down payment, but acknowledges that they make the mortgage payments with the assistance of her brother-in-law. She claims that she and her husband give her brother-in-law cash and he makes the payments. They do not appear to operate a bank account and do not have any financial records to show how they meet any of their daily living expenses, taxes, utilities or other on-going household expenses, which leads to an inference that this family has other sources of income than simply Namatulla’s Disability payments.

[141] Syeda knows nothing about the first or second Accident Benefit payments to her husband. With respect to the third accident, on August 5, 2003, Syeda was with her husband in the car when the third accident happened. Syeda claimed injuries. Syeda received help through the insurer to pay for housekeeping for several months. It was a sister-in-law, Fatima, who was paid this money to help her 7 days per week. Syeda was not a good historian and at times appeared very nervous giving her testimony. She says that she cannot read English and only reads Urdu, yet she filled out all the forms for such housekeeping assistance from accident #3.

[142] The Insurer of the 3rd accident submitted, as evidence, the IRSI Occupational Therapy Reports for Syeda, dated December 29, 2003 and January 4, 2004. The second Report states the following:

This essentially means that the Insurer was paying other family members to do all the family tasks for at least 4 months, at a total of \$500 per week or approximately \$8,600 for the 4 months. It should be noted that the very person who was being paid to help Syeda throughout this period, Fatima, was also in the same automobile accident. Ms. Hussaini has not attempted any of her pre-MVA housekeeping tasks, relying on her two hired helpers to manage all caregiving, meal preparation and housekeeping tasks. She continues to have Ms. Fatima at her home 7 days a week for 7-8 hours a day for caregiving and meal preparation, and Mr. Syed for 10 hours per week for all housekeeping tasks.

[143] The Insurer also submitted a DAC Assessment Report on Syeda's claims against the Insurer, sending her to be assessed, as it refused to pay for help any longer after April, 2004. The Report is dated June 30, 2004, nearly one year after the third accident. Dr. Purewal is listed as Syeda's doctor. When cross-examined about this testing, Syeda's evidence was vague and unhelpful.

[144] Also submitted, as evidence is an Equifax search in 1995 in the welfare file for Namatulla and his wife. This shows the name of his wife's current employer at "SN Plumbing Mechanical". Namatulla had no explanation for this. Namatulla's evidence, however, is that he somehow renewed his temporary plumber's licence and got an extension to December 15, 2004. I find his evidence to also be fabricated. Syeda, in my view, also participated in defrauding the third insurer, Wellington, whose file was before the Court.

(c) Mohammed Ameen Khan

[145] Mohammed Ameen Khan ("Khan") was called to give evidence. He claims that Namatulla did plumbing work for him 3 or 4 times prior to the 1990 accident, and his business name appears on one of the receipts. Khan's evidence about the details about who was with Namatulla and at what locations they worked is vague. He also says he only paid by cash and has no records to prove the work done. When the work Order Receipts were produced, Khan did not seem to recognize them and said that he did not know that Namatulla had been in a car accident in 1990. He was asked by the Hussainis to come and give evidence, not having seen them for years.

[146] Khan did not know whether Namatulla was a licensed plumber or not, yet he was required to use a licensed plumber, for his meat and grocery business. He says he

never received any paperwork from Namatulla. Khan, had very little to contribute to the evidence. He has no records, no receipts, and no estimates of the work Namatulla is said to have done.

II: THE CLAIMS OF OBAIDULLA

1. Obaidulla's Background

[147] Obaidulla is presently 46 years of age. He came to Canada from India in December 1984, at the age of 26, after completing 2 years of college education there. He calls himself an "accountant", although he has no formal qualifications as such. He says he has bookkeeping skills, which he used when he worked in India.

[148] Obaidulla was the front-seat passenger in the car driven by Namatulla at the time of the December 25, 1990 accident. Obaidulla was then 32 years of age. At the time of the accident, Obaidulla had been married for the second time. He has a daughter from his first marriage. Since the accident, Obaidulla and his second wife have had 8 children, who are now between the ages of 2 to 15 years. Obaidulla also lives in a home but it is registered in his wife's name, which he claims is really owned by his wife's brother.

[149] Obaidulla, also, has not worked since the time of the 1990 accident. Before the accident, Obaidulla says that he worked at a temp agency, worked at Acadian Platers, and later both for Petro Canada and for a Shell Oil Company gas bar and variety store prior to starting with A-Z, working with Namatulla in June of 1989. While with Namatulla, Obaidulla says he was trained to do plumbing jobs, such as replacing pipes and installing toilets and bathtubs, clearing drains, replacing parts. He says both Barkatulla and Basharatulla also worked there at the same time, and he began working full-time for A-Z around September 1989.

[150] Obaidulla says that before the accident, he had both in India and later in Canada, been very active playing cricket and swimming. In Canada, Obaidulla says that he also became involved in Indian cultural programmes and was on the Board of one organization. He claims all of his physical activities ceased after the accident.

[151] Obaidulla's pre-accident medical history showed that he had an eye injury while at Acadian Platers, had appendix surgery in 1987, some urinary problems and injured his hand at work in 1988. There is documentation from Acadian Platers that says Obaidulla, in his last year of employment with them, was absent 45% of the time. His health was therefore precarious before the accident in 1990. Obaidulla explains this as being depression, caused by the breakdown of his marriage to his first wife. Obaidulla, was however, was able to return to India to visit in 1988 and later in 1990 and once since then. What is puzzling about both Namatulla's and Obaidulla's trips to India after the first accident, is that they claim to have suffered these severely painful injuries, yet were apparently able to sit in regular airplane seats for more many, many hours before reaching India.

2. The December 25, 1990 Automobile Accident

[152] Obaidulla's explanation about how the accident occurred and what damage was done to the car is similar to that of Namatulla. He says, however, that Namatulla was driving about 80-90 kph at the time, with the weather being light flurries and a little foggy, whereas Namatulla says it was raining. He also claims that Namatulla was driving in the right curb land and that they were hit on the driver's left side of the car, with the other vehicle being "dragged along". Obaidulla says that the front glass was broken and that the windshield was "cracked" and that the entire car's left side of the body was damaged. He claims to have hit the dashboard and hit the windshield when it cracked. He also says that he "passed out for a few minutes." None of this evidence is true on the facts before me. The car was not in the right lane, the damage to the car was otherwise and no one hit the windshield, nor was it cracked in the accident.

[153] Obaidulla says that the Dhillon vehicle went out of control and hit them with the front-end of the car, with the other driver going 80-85 kph when they were hit. This evidence is totally contradicted by Bains' evidence. He claims that he saw the Dhillon vehicle running beside Namatulla's car for 4-5 minutes before it hit them. This makes no sense at all, since Namatulla's speed was supposedly faster than the Dhillon car, and given that the Dhillon vehicle pulled onto Highway 27 at Belfield Road. On the evidence before me, I find that the Dhillon vehicle was in the right lane when the accident occurred, and that the Hussainis' evidence about this accident is fabricated.

[154] Obaidulla agrees that Namatulla's drawing shows how and where the cars were at the time of the accident. None of their evidence, however, makes sense when the true damage to the car is looked at. Obaidulla claims he was "dragged" out of the car by one of the brothers, yet Namatulla claims Obaidulla got out first and dragged him out.

[155] When Obaidulla was shown, by his own counsel, the photographs of the damaged car, he had to admit that the windshield of the car was not cracked. He says he saw it "on the inside". He also had to admit that the pictures showed no damage to the driver's door of Namatulla's car. When asked, on cross-examination, about the damage to the other car, Obaidulla says it was damaged on the front end where it hit Namatulla's car. When shown the picture of the Dhillon car, Obaidulla had to admit that there was no damage on the front end of the other car.

[156] Obaidulla's story about meeting with Bains, the driver of the other car, is similar to that of Namatulla. Obaidulla confirms Bains' evidence that she and his brother walked some two blocks away to make a phone call to her brother-in-law, yet he or Namatulla is said to have had a cell phone with them, which was used to call another brother, who arrived with Khan. Obaidulla says that he spoke to Dhillon, who asked him not to call the police. Dhillon's evidence, which I accept, is that this is not so. He agrees that the police did arrive at one point. Obaidulla says they told the police that Bains asked them to be kind to her, and so the police agreed it was acceptable if they worked it out themselves. He claims the police made up a report but none has been produced at trial.

[157] Obaidulla's story about how Khan came to the accident, does not agree with Namatulla's story. He says Khan was with them when they bought groceries and was following them, but Khan says he was at home and was called by one of the other brothers to come with him to the accident. While being examined about the details of the accident, Obaidulla rarely gave a straight answer to any question he was asked.

3. Obaidulla's Injuries

[158] After the 1990 accident, Obaidulla says he immediately felt the severe pain in his back and shoulder, was dizzy, had hit his head and had some swelling and bleeding, and that the other brothers got bandages from the box in the trunk to apply the bandages to him. There is no evidence to support any head injury. He also says he had fractured 2 ribs but there is no medical evidence of this. Obaidulla too, saw Dr. Chen. He claims all 4 brothers got the same treatment after the accident.

[159] Obaidulla says he was injured along all of the right side of his body and that there is pain and numbness along that side from his right shoulder down to his foot, with his complete right leg injured. He says that Dr. Chen gave him a thorough examination and that he was also sent to Dr. Lam for chiropractic treatment and was also sent for X-rays. Dr. Majesky examined those X-rays and his Report says that Obaidulla's spine already showed degenerative changes in his back at the time of the accident.

4. The Medical Evidence

a) Evidence of Dr. Chen

[160] Dr. Chen is the first, and one of three family doctors who saw Obaidulla. He gave evidence at Trial. His clinical Notes and Records were submitted as evidence. Obaidulla first attended on him on December 29, 1990, after the first accident. His diagnosis is that Obaidulla suffered back strain and a stiff neck. Obaidulla told him that he was a plumber's assistant.

[161] Dr. Chen's Notes show that Obaidulla complained first about the back pain, later about the neck pain and that the neck pain continued throughout all his visits from Obaidulla. He has a record of Obaidulla having had back pain before the accident and this is shown on his examinations of June 8, 1989, May 4, 1990, October 31, 1990 and finally after the accident.

[162] Dr. Chen has seen Obaidulla continually as a patient since 1987 up to and including September 14, 2004. Obaidulla also complained of muscle spasm. Dr. Chen was asked whether this could be faked and he said it was a 50:50 chance it could be. When questioned about the March 3, 1992 X-rays of Obaidulla's back, which showed all things as being normal, with a slight degeneration of the spine, Dr. Chen says that a motor vehicle accident can be the straw that broke the camel's back, when examining this kind of degeneration. While this may be the case with some automobile accident victims, given the whole of the medical evidence before me regarding Obaidulla's medical history and various doctors' reports, I conclude that this was not the case with him.

[163] Dr. Chen says that the stiffness of the neck, muscle spasm and pain are all subjective complaints that Obaidulla had. For his pain, Dr. Chen gave Obaidulla prescriptions for Naparosym (anti-inflammatory), Norflex (muscle relaxant), Tylenol #3 (analgesic), Flexeril (muscle relaxant), Robaxacol (muscle relaxant), Rugan, Voltarin SR (long-lasting anti-inflammatory), Myoflex (ointment for muscles), Restorial (sleeping pill), Halcion (sleeping pill). Since Obaidulla never reported a lessening of the pain over 14 years, Dr. Chen says he kept changing and giving Obaidulla more medications. Obaidulla, too, saw other doctors at the same time as he saw Dr. Chen.

[164] Dr. Chen believes that some of Obaidulla's mid-back pain could be due to his loss of the natural curvature of the spine, perhaps due to muscle spasm. Dr. Virgin, who saw Obaidulla on February 1, 1993, reports that there is no compression of the lumbar or thoracic vertebrae and that he did not see any real evidence of degenerative disc disease.

[165] Dr. Chen, when questioned about Obaidulla's ability to work, said that he could not go back to his old job, given the need to bend and lift heavy objects. Obaidulla was, however, advised by Dr. Chen to go for re-training in 1994. He did not do so. There was no improvement in Obaidulla's condition, says Dr. Chen, from 1995 to 2004, when he stopped seeing him.

[166] On cross-examination, Dr. Chen says that he was told by Obaidulla that in the first accident, his head went backward and forward. He says all 3 brothers had the same complaints about low back and neck pain, which relate to neck strain. On cross-examination, Dr. Chen agreed that the majority of people who have this type of accident get better. When asked whether Obaidulla ever complained about a broken nose, Dr. Chen had no record of this, yet Obaidulla had complained to others about it. Dr. Chen was never told by Obaidulla about the second accident nor was he aware that Dr. Purewal or Dr. Mohammed were also treating him at the same time. Had he known this, Dr. Chen says, "I would have kicked him out."

[167] Dr. Chen agrees that he read the Report of Dr. Fred Langer dated May 18, 1991, and agrees that Dr. Langer says that the X-rays of Obaidulla were normal, and that further X-rays taken in 1992 and 1995 also show the cervical and lumbar spine to be normal. Dr. Chen had read Dr. Roscoe's 1992 Report, where he found Obaidulla to be exaggerating his symptoms and that they were psychogenic in origin. On a review of Dr. Virgin's notes of April 22, 1993, Dr. Chen agrees that Dr. Virgin also says the spine is normal. He confirmed that throughout his treatment of Obaidulla for neck pain, it never got better, accordingly to Obaidulla. Further, Dr. Chen says that the anxiety neurosis that Obaidulla showed, had nothing to do with the accident.

[168] Dr. Chen sent Obaidulla to Dr. Wiley in 1994, and Dr. Wiley diagnosed an "obvious function overlay", which Dr. Chen agrees means psychogenic symptoms. He further confirmed that Dr. Vincent also could find nothing wrong with Obaidulla.

[169] Dr. Chen admits that he did observe Obaidulla on the video of his office waiting room, and says that Obaidulla always "walked away fast." He told Obaidulla to go back

to work in 1994 and after 1997, Dr. Chen's notes are replete with references that Obaidulla was walking normally.

b) Evidence of Dr. Purewal

[170] Dr. Purewal is a Family Physician, who received his medical training in India and has practiced in Canada since 1986. His evidence is that he has treated many accident victims. Dr. Purewal first saw Obaidulla in March, 1993. He later came to him on January 9, 1995, because of the second automobile accident. Obaidulla told Dr. Purewal that he was an assistant plumber, had been injured in this accident and was taken to the hospital with neck, shoulder and back pain. Dr. Purewal prescribed a neck collar for him, and gave him Naprosyn and Norflex (two drugs he was already taking as being prescribed by Dr. Chen), as well as some sleeping pills. He was later prescribed Tylenol 3 (now receiving it from 3 doctors) as well as Elavil. Dr. Purewal noticed tenderness in the spinal area and a marked restriction of neck and back movement.

[171] Dr. Purewal, in his Notes, wrote "No MVA before". He did not learn of the 1990 accident, he says, until 1998. Dr. Purewal accepted Obaidulla's evidence that he had also had a concussion at the time of the second accident and 2 fractured ribs. This evidence, as has been proven, was not true nor was his statement that he had had no previous accident. Dr. Purewal's notes indicate that he saw Obaidulla in May 2000, when he claims he still had the headaches, but had full range of movement and there was no neurological damage.

[172] On Cross-Examination, Dr. Purewal admitted that Obaidulla had received a great deal of treatment without a lot of results or improvement. He acknowledged that in Obaidulla's 1994 annual examination, he did not notice and pain in the neck, shoulders or back.

c) Evidence of Dr. Lam

[173] Dr. Lam is a Chiropractor, who treated both Namatulla and Obaidulla from the time of the first accident. He also has a diploma in Rehabilitation and his practice includes injury treatment and diagnosis. He says that modality is included in part of this treatment of deep friction massage and a stretching exercise programme. While Dr. Lam may have tried to get the brothers to do exercises and stretching, neither did so. His was only one of many recommended treatments they refused to do.

[174] Obaidulla also told Dr. Lam that in the 1990 accident, he hit the windshield with his head and that the windshield was cracked. We know from other evidence that this was not true. Both Obaidulla and Namatulla told Dr. Lam about their same symptoms. The X-rays revealed, however, that there was already some degeneration of the upper and middle lumbar area of Obaidulla's spine. Dr. Lam says Obaidulla told him he had severe low back pain, and Dr. Lam noted his posture was stooped by 30 degrees, and he walked slowly.

[175] Dr. Lam treated Obaidulla from the time of the 1990 accident until September 14, 2004. It is his opinion that by October 30, 1992, Obaidulla had “sort of stabilized.” He was seen by Dr. Lam 34 times in 1991, 32 times in 1992, 23 times in 1993, and 21 times in 1994 for treatment. OHIP, says Dr. Lam now pays for a maximum of 21 treatments per year. As the years went on, even after the second accident, the number of treatments lessened to 5 in 2004. None seemed to help Obaidulla’s alleged problems.

d) Evidence of Dr. Amani

[176] Dr. Amani gave evidence at Trial. He graduated in medicine in 1992 and later took training as a specialist in physical medicine and rehabilitation and is certified as a Physiatrist. He deals with spinal injuries, injuries to muscles, ligaments and skeletal structure. He first saw Obaidulla at the request of Dr. Kachooie on October 5, 1996, about the 1995 accident. He treated Obaidulla for chronic headaches with nerve block injections. Later, in 2001, Dr. Amani’s notes indicate that Obaidulla was still complaining of weakness in the bilateral extremities, was not attending physiotherapy and had numbness in his fingers and neck pain. He says that Obaidulla had tenderness over the C3, C4, and C5 area of the spine.

[177] Dr. Amani ordered all the same tests that had been done by previous treating doctors of Obaidulla but added a Bone Scan to it. He says the tests showed minimal changes in the right shoulder and that the remainder of the skeleton “is unremarkable.” An MRI showed some mild disc bulging. By 2004, Dr. Amani says there was some moderate degeneration in the C3, C4 and C5 area. This was the last time Dr. Amani treated Obaidulla. He agrees that none of these tests can show small tearing of the muscles and scar tissue can form there. From 1998 onward, Dr. Amani treated Obaidulla with strong steroid medication to alleviate the severe pain but concluded that there had been no improvement in his condition.

[178] On Cross-Examination, Dr. Amani admitted that by middle age, 10% of the population shows degenerative disc problems. He also said that stenosis, increases with age. People who have this early on, he says, are more prone to further degenerative changes as they age. He was not initially told about the 1990 accident.

e) The Evidence of Dr. Langer

[179] Dr. Langer saw all three Hussaini brothers on May 7, 1991, for the insurer. He had a letter of direction from the insurer on Obaidulla and followed the same procedure that he did for Namatulla, taking notes of the history, physically examining him and doing a neurological assessment. He told Dr. Langer that he had not hit anything on the inside of the car when it was struck, had a little bit of pain after the accident, went home and saw a doctor a few days later.

[180] Dr. Langer found that Obaidulla had no problem doing a straight-leg lift, showed no signs of neurological impairment. He observed Obaidulla both standing and walking and says there were no signs of nerve root impairment. Dr. Langer also says that Obaidulla refused to move his back at all and it remained rigid throughout the

examination. In other respects, Obaidulla appeared to function normally, said Dr. Langer. He exhibited no tenderness when examined. Dr. Langer reviewed the Report of Dr. Majesky and the X-rays, noting that there was already some disc degeneration in the L1 and L2 area. This, however, says Dr. Langer is normal in a man between 25 and 32 years of age. At that time Obaidulla was 32 years of age.

[181] Dr. Langer says he found no abnormalities in Obaidulla on his later examination either. There was no evidence of any pathology. He did say that Obaidulla's lower back was stronger than his cervical spine area, but there was no evidence of any serious or severe injury, which could prevent him from working. On both examinations, Dr. Langer said that Obaidulla could return to work. He did not do so and has not worked for the past 14 years.

[182] Dr. Langer, on examining Dr. Chen's Report of 1992, said that he disagrees with Dr. Chen's conclusions that Obaidulla had soft tissue injuries on top of degeneration of the spine. He could see no signs, which would cause him to agree with Dr. Chen that Obaidulla had any on-going impairment or spasm. There were no signs of physically induced impairment said Dr. Langer. Dr. Langer also reviewed other medical reports before he gave his second report to the insurer. He notes that the findings of Dr. Roscoe and Dr. Virgin were the same about Obaidulla as they had been about Namatulla.

[183] When Dr. Langer was shown Obaidulla's CAT Scan dated April 22, 1993, he could find no evidence of paralysis, and nothing pointed to that deep-seated pain that Obaidulla continued to complain about. The low back appeared normal. He also notes that Dr. Purewal in his Report of May 27, 1994, did not find any spinal or muscular skeletal problems. He also looked at the Report of Dr. Bent, dated January 5, 1995, after the second accident, where Dr. Bent says he could not persuade Obaidulla to move his back or neck. In a later Report of his dated June 27, 1995, Dr. Bent said Obaidulla had suffered a simple soft tissue injury in the second accident, and in September, he noted that a Bone Scan was normal.

[184] It must be remembered, that by this time, neither of the brothers had neither worked nor done any exercise over all these years and neither had followed various doctors' recommendations regarding physiotherapy and exercise and walking. Dr. Langer did not change his opinion after seeing these various medical reports of other doctors after he had delivered his second Report to the insurer.

[185] On Cross-Examination, Dr. Langer readily admitted that while he had not seen Obaidulla on 22 occasions in one year, as had Dr. Chen, nor had he seen him the same number of times that Dr. Virgin had, his diagnosis remained the same. While Dr. Langer was unaware of all the medication Obaidulla took, it did not affect his conclusions.

[186] On cross-examination, Dr. Langer agrees that he saw Obaidulla each time to provide an expert opinion for the Insurer. He was not told by Obaidulla as to what medication he was taking until the second visit. In my view, this does not in any way affect the Reports done by Dr. Langer. Dr. Langer also agreed that some of the symptoms that Obaidulla complained of could be caused by some form of hyperflexion,

which took place in an accident. On the other hand, we do know that Obaidulla's description of how the accident took place, what damage was done to what part of the car, and what happened in the accident, was not what really happened. Having reviewed all of the medical reports on Obaidulla, I am of the view that Obaidulla's injuries in the 1990 accident could be described as a minor whiplash injury, at best.

[187] Dr. Langer also agrees, that many of Obaidulla's symptoms were subjective rather than objective in nature. He says, however, that Obaidulla's symptoms were exaggerated and appeared to be excessive for the type of accident he was involved in. He agrees with Obaidulla's counsel that scar tissue can form around damaged nerves and cause problems, but this was not what happened to Obaidulla. Dr. Langer's diagnosis in his first Report is that Obaidulla could have returned to work in late 1990.

[188] This remains his finding in his Second Report. He says he is not disputing what Obaidulla says about pain, however, there was nothing he could see on either examination, or on his review of other doctors' reports, to make him change his mind about his diagnosis. He says that the major elements of Obaidulla's complaints do not seem to be physically derived.

[189] When questioned about spondylosis and whether Obaidulla could have this, Dr. Langer says that it is a narrowing of the spinal area and that it can cause pain. He then noted the findings of Dr. Majesky in his radiology reports, stating that as early as December 29, 1990, Obaidulla already had early signs of degenerative spinal disease. Some further moderate spinal disease did show up in the CAT Scan of April 16, 2004, but this is 14 years after the first accident. Dr. Langer says that it does not relate to the 1990 accident. There was no evidence of real injury in this original accident to lead to Obaidulla's complaints over the next 14 years. Dr. Langer says only 1% of people with soft tissue injury never get completely better, and there is nothing before me, which would lead me to believe that Obaidulla falls into that category.

[190] Finally, Dr. Langer points to the fact that degenerative changes to the spine occur in all persons as they age and it becomes more apparent when people are in their 30's and 40's, and by the time they are in their 60's, almost 98% of persons, who have spinal X-rays, appear to have some degenerative spinal disease. Although Dr. Langer was vigorously cross-examined by Obaidulla's counsel, his answers were always straightforward and his Reports support his findings, which I accept.

f) The Evidence of Dr. Schutz

[191] Dr. Schutz, a Neurosurgeon, was asked by the law firm of Paul Lee to see Obaidulla in January 1996, after the second accident. Dr. Schutz gave evidence at Trial. It is Dr. Schutz's evidence is that he was told by Obaidulla that he had not worked since December 25, 1990, and that he was a plumber's assistant. Obaidulla's story about the accident given to Dr. Schutz was also fabricated, as were many of the same incidents he fabricated and told others about the accident, respecting where the car was hit, how he hit the windshield and lost consciousness, how he had a compressed fracture of the T9 vertebrae, and his problems moving, the neck and back pain, dizziness. Dr. Schutz notes

that Obaidulla was in poor physical shape for a 36 year old man, had poor muscle tone, had an abdomen that protruded, yet his general examination showed nothing unremarkable about his health and his blood pressure was normal.

[192] Dr. Schutz further says that Obaidulla's neurological examination and mental status examination showed nothing abnormal. He also says that there were no objective deficits in the motor examination. Dr. Schutz tried to get Obaidulla to pull down against Dr. Schutz's arm, but he showed no strength at all. Obaidulla was exaggerating his lack of strength in this manner, and exaggerated his loss of sensation on the right side, says Dr. Schutz, as well as the fact he said he said he could not move his neck or back.

[193] Dr. Schutz also examined many of the other doctors' reports done prior to this visit by Obaidulla. He says there was no evidence of injury to the spine or to the discs, and not herniation of the discs. He diagnosed Obaidulla as having at most, a "soft tissue injury". He says that 90% of soft tissue injuries subside within 6 weeks and says that most disc herniation is not caused by trauma but by spontaneous happening.

[194] On cross-examination, Dr. Schutz agreed that his examination took probably no more than one hour, and that he had not seen Dr. Lam's chiropractic notes, but he was aware that Obaidulla was taking muscle relaxants and other medication when he was seen by him. He says he is familiar with the Quebec study on whiplash and that it is often quoted, but he says that in all the reports he read about Obaidulla there was nothing about a tearing of muscles or ligaments and he stood by his original diagnosis. There was nothing in any of the reports and in his own examination to support any findings of neurological problems other than minor cervical spondylosis, which is part of the normal degenerative process.

g) The Evidence of Dr. Ross

[195] Having seen all three brothers the same day, Dr. Ross says that there was a "remarkable striking consistency among them, that you don't often see." He says that neither Namatulla nor Obaidulla had the psychological factors to make the pain fall within that category of psychological pain, the other types of pain being chronic, such as arthritis and cancer pain. He did say that such types of pain can magnify each other, but this he did not see in either Namatulla or Obaidulla. He says both were "alert and oriented". Dr. Ross also diagnosed Obaidulla as Malingering, fitting the DSM-IV-65.L test.

[196] On cross-examination, Dr. Ross explained that in order to have chronic pain, it must have lasted for 6 months or more, and it is a constellation of symptoms that all come together. He says that Orthopaedic surgeons often see this kind of pain, which can become a disorder, before surgery takes place.

[197] Further, Dr. Ross says that the 3 brothers all came to see him under Court Order. In reading the many reports on Obaidulla from other doctors, Dr. Ross says that he notes that Obaidulla had failed to tell Dr. Purewal about the first accident and noted that at least 3 different doctors had seen him in the month prior to him coming to Dr. Ross. Obaidulla

was referred to many doctors, who found no disability. For example, Dr. McLaughlin, a Neuropsychologist examined him for cervical injuries and found none, noting that Obaidulla was consciously maintaining exaggerated symptoms. Others said Obaidulla was malingering after the second accident. Dr. Margules, was also never told about the first accident. In 1997, he found that Obaidulla had a fictitious disorder and a Ganser syndrome (with no basis to it, it being a product of false or grossly exaggerated symptoms.)

[198] Dr. Ross also found Obaidulla to be oriented. His report, however, preceded that of Dr. Jain, who found him later to be disoriented. Dr. Ross, however, says that he cannot accept Obaidulla's statement that he hit the windshield of the car in 1990, when he was the front seat passenger, since the car is alleged to have been hit on the driver's side. It was not a rear-end collision, and there were no stitches in medical reports, no bumps reported on the head or face. Obaidulla also told Dr. Ross that he had a compression fracture of the thoracic region, but there is no medical evidence to support this. He was also able to move his back, when he explained about this alleged fracture to Dr. Ross, which he said he could not ordinarily do.

[199] Dr. Ross says that Obaidulla showed no sadness, when being questioned by him, and showed no signs of distress, yet was still complaining of neck and back pain.

[200] Dr. Ross says that his opinion is independent, and he is not an employee of a lawyer and no restrictions have been placed on him in reaching the opinion that he did.

[201] Although Dr. Ross was carefully cross-examined by Obaidulla's counsel on his work as an expert in lawsuits, he does not just work for insurers, since 20% of his work is clinical and 40% is at the request of employers and occupation-related incidents, with only 20% of his practice as medical/legal work. He says that patients can mislead practitioners in any setting, and that two disparate doctors can come to different conclusions. Notwithstanding this, Dr. Ross says that Obaidulla was not co-operative during his examination and that he failed to tell him of other factors, and failed to say he had earlier functional limitations.

[202] I find Dr. Ross to be a very credible witness, and accept his opinion that Obaidulla has been malingering over these 14 years since the first accident.

h) Other medical evidence

[203] Obaidulla says that there has been some improvement in his condition over the years, but not much. He says he feels better for 3 or 4 hours after certain treatment such as physiotherapy or chiropractic treatments. Obaidulla also saw Dr. Roscoe, the orthopaedic surgeon 7 times in 1991 for neck and shoulder strain. When Dr. Roscoe found that Obaidulla was exaggerating his pain and found that there was nothing wrong with him, Obaidulla ceased going to him. In January 1993, Obaidulla also saw Dr. Virgin, who prescribed similar medications for his "severe pain." He began sometimes using a walker. He had a CAT Scan, further X-rays in 1993. Dr. Virgin reported that these tests showed that the low back was normal. Obaidulla, however, claims that all this

time his neck remained stiff. He was sent to Dr. Wiley in November 1994, when he was now complaining of chest pain, as well as the other pain. Like Namatulla, Obaidulla also was seeing both Dr. Purewal and Dr. Mohammed at the same time as he saw Dr. Chen.

[204] Obaidulla saw Dr. Veidlenger, a Neurologist in January 1995, and Dr. Meier, a Psychiatrist in June 1995, who, says Obaidulla, diagnosed him as depressed, after the second accident. He was also told to attend a clinic to learn to relax, but failed to go.

5. Obaidulla's 1995 Automobile Accident

[205] Obaidulla was a passenger in a car driven by one of his brothers, when the second accident occurred. They were hit on January 1, 1995, by a car making a U-turn. He says it was a severe impact and he ended up with the same problems that he had in the first accident. He says he passed out for a few minutes and was taken to the hospital by ambulance. He says he suffered a head injury. He saw Dr. Bent, an orthopaedic surgeon and Dr. Purewal. He did not tell Dr. Purewal about the first accident.

[206] Obaidulla, saw Dr. Wilson, a neurologist and Dr. Kachooie, a Physiatrist, to whom he was referred by Dr. Chen. Obaidulla claims that the pain from his first accident was exacerbated by the second accident. He says he found walking and sitting for long times difficult. He had difficulty negotiating stairs, and that the pain was in his neck, back, down his leg to his feet sometimes, and all the right side of his body hurt. He claims he also had a concussion, memory loss and herniated discs, none of which were ever confirmed by any of his medical doctors. The ambulance report, however, says, "no loss of consciousness."

[207] Obaidulla claims that he tried to return to work in the Islamic community center to do small jobs but the pain was too much. There is, however, no record in any of the medical reports that Obaidulla had worked or attempted to work at the center. He then said that he did some work in 1997 at someone's house but found the pain to be too bad to continue. I did not find his evidence very convincing, and am satisfied that if he performed any work during the period 1990 to 1995, he kept it from the insurers and his doctors. Nor, did I find his evidence about all the work he did around the house before the 1990 accident, to be very convincing.

[208] The evidence before me is that Obaidulla also went on General Welfare after the 1990 accident and it was his only declared source of income, from then on. He received about \$2,000 per month from Social Assistance. Obaidulla claims that after the 1990 accident, the brothers all "shared" the payments they received from the insurer and later Welfare.

[209] Obaidulla also saw a plethora of doctors, as did Namatulla. In Obaidulla's medical brief, there are 35 headings for the different doctors Obaidulla has seen over the years. In addition to those already mentioned in these Reasons, who had ordered further X-rays, a MRI, a CAT Scan and other tests, Obaidulla also saw Dr. Amani, who worked with Dr. Kachooie. They sent him for rehabilitation, which he attended for a year, with mixed short-term results. He also continued to see Dr. Lam, the Chiropractor. He claims

that he was told he suffered from depression, had suffered a concussion, and that he had disc herniation problems of his spine as a result of the 1995 accident.

[210] In 1996, Obaidulla started seeing Dr. Jain, a psychiatrist, for his brain problems and depression. He did not tell Dr. Jain about the first accident.

[211] Obaidulla has dropped his claim against State Farm for further Accident Benefits. In my view this was appropriate, given the abundance of medical evidence to support Dr. Langer's findings that he was able to return to work within a year of the 1990 accident.

6. Surveillance

[212] Bond and Associates Investigators performed surveillance on Obaidulla on April 10, 17, 18 and 19, 1995, just 4 months after the second accident. It was presented in evidence after Obaidulla said, during cross-examination, that he was unable to pick things up and had unbearable pain all the time. The tape shows Obaidulla carrying 4 bags of groceries, a task he had previously said he could not do. In viewing the tape, I noted also that Obaidulla was walking in an easy manner, without the exaggerated stiffness that was reported by some of his doctors.

7. Obaidulla's Accident Benefits Claim in the 1990 Accident

[213] While Obaidulla has settled his Accident Benefit Claims from the first accident, it is necessary to outline what he did in this regard to show the brothers' pattern of claims.

[214] Like Namatulla, Obaidulla filled in the forms for Accident Benefits after the 1990 accident. He says that the information on his form is incorrect, since it said that he had worked at Acadian Platers before the accident, whereas he should have put he worked for A-Z with Namatulla. He and Namatulla worked together to fill out his employment forms for A-Z, although they each came up with a different story, which is noted below.

[215] Just as Namatulla was cut off the Accident Benefits after being examined by Dr. Fred Langer, an orthopaedic surgeon, so was Obaidulla, who also saw Dr. Langer. He claims that Dr. Langer only saw him for a short period of time and did not carefully examine him. When he was told by Dr. Langer that he could return to work, just as Namatulla was told, he did not accept this diagnosis and has still not returned to work after 14 years. He says that Dr. Chen disagreed with Dr. Langer and told him he could not return to work. His benefits, however, were never reinstated by the insurer. He claims none of his other doctors said he could return to work.

8. Obaidulla's Accident Benefit Claims in the 1995 Accident

[216] I am satisfied on the evidence before me that Obaidulla and Namatulla worked together to help Obaidulla apply for Accident Benefits after the 1995 accident. Obaidulla

had to be employed in order to apply for income replacements benefits. He claims that his mental health was not good at the time, but I discount this. There is an Employer's Confirmation of Income, which was sent to Wellington Insurance Company ("Wellington"), from a company called "S.N. Plumbing & Mechanical Services". This document was signed by "H. Nemat", another name used by Namatulla. The address on the form is clearly that of Namatulla. On the evidence, I find this to be Namatulla's signature. The two of them did not tell the truth when they said that Obaidulla had earned \$2,700 in the 4 weeks prior to the second accident. There is also a letter, which I find was also signed by Namatulla, confirming the work record.

9. Evidence of Obaidulla's Wife

[217] Obaidulla's wife, Sayera Banu Hussaini ("Sayera"), 34 years of age. She married Obaidulla in August 1988, and saw him for 2 weeks in India in 1990 and remained in India until September of 1991, when she came to Canada to be with him. She was very shy and retiring in giving her evidence to the Court. I do not think she was happy at being called to do this, and at times appeared nervous and agitated.

[218] In India, says Sayera, Obaidulla was an active cricket player and a champion in that sport, having watched certain matches in India in which he played. As well, she says he was a good swimmer and hockey player. When she arrived in Canada, Sayera says Obaidulla met her at the airport and she noticed "a lot of difference from when I saw him in India." She says she asked him to pick up her luggage and he could not do this. She was aware of the accident, as Obaidulla had told her by phone about it. He appeared to her to be "weak and exhausted." As Sayera put it, the "...difference was like the earth and the sky."

[219] Sayera says Obaidulla complained of backache, neck and shoulder pain, and a right arm that did not work too well. She says he has been unable to lift any of their 8 children since each was born and she has had to do all the work in their household, except for the grocery shopping, which her husband helps her with. The only work outside the home that Sayera has done was some sewing for a small company for a few months in 1993.

[220] Sayera says that her husband's condition has not improved over the years, and she is aware of the second accident he was involved with in 1995. She says he said he had a concussion and she has observed his loss of memory and felt dizzy. There is, however, no medical evidence of such concussion. She thinks it aggravated his earlier injuries and made the pain worse. Sayera says when she came here her whole life was dependent upon him and her whole life is totally different from what she expected.

[221] On cross-examination, Sayera kept emphasizing her husband's pain and his difficulty walking and said that Namatulla and Barkatulla had the same problems. She could answer little about her brothers-in-law except that Basharatulla had helped Namatulla buy his house (which is also in his wife's name) and she does not know what they do for a living, yet they appear to be a closely-knit family.

10. Obaidulla's 1995 Accident and Namatulla's involvement

[222] Namatulla confirmed that Obaidulla was also involved in a second accident in 1995, where he made a claim for Accident Benefits from Wellington, saying that he was working for a plumbing company at that time. That insurance file was in evidence before me in Court.

[223] After this accident, Obaidulla claimed that he worked for a plumbing company called S.N. Plumbing and Mechanical Services. Namatulla's evidence is that this company was started by Basharatulla and says he knows that Obaidulla never worked for it. Namatulla agreed that his initials are "S.N." but says it is not his signature on this company's letter dated January 9, 1995.

[224] A number of documents were produced with Namatulla's signature on them, and I am satisfied on the evidence before me that Namatulla signed this letter, helped organize this non-existent company and helped perpetrate Obaidulla's fraud on Wellington. For example, Exhibit 18 is 4 pay slips for Obaidulla from S.N. for December 1994 and January 1995. The stamp for the company shows its address as that of Namatulla, being 187 Shawnee Circle. The signature of the employer is "S. Nemat", a signature that is Namatulla's. He agrees he often used that signature but denies it is his. I do not accept that evidence as truthful, given that is exactly how he has signed other documents in evidence before me.

[225] Obaidulla now says that it was a lie, and he is ashamed of this. He does, however, blame his brothers for the fraud and does not take any responsibility for the untruths that were written out for the insurer in order to receive further Accident Benefits. In the form, Obaidulla says he had never been involved in another car accident, which was another untruth. He also does not tell the truth about this when being examined under oath at discovery about the second accident. I do not accept Obaidulla protestations as genuine regarding his claim that his brothers made him tell the lies. It took both he and Namatulla to come up with this scheme to produce the letterhead, the stamp and the pay slips of the alleged S.N Plumbing, to help perpetrate the fraud. Obaidulla claims not to know where any of these documents came from. I find on the evidence that he and Namatulla both participated in the fraud.

[226] In his 1994 Income Tax Return, Obaidulla only declared his income from Social Assistance of \$21,066.94. He filed that Income Tax Return and received a refund. It was later amended to show income at April 6, 1995 of \$26,221, but Obaidulla claims that this is wrong, even though he received a refund of \$3,000.

[227] Obaidulla received Accident Benefits for about a year from Wellington before the fraud was discovered. He was sent to Dr. Soper, by the Insurer, who said he could return to work. The matter was then sent to arbitration under the *Insurance Act*, on April 19-22, 1999. One of the Exhibits at Trial was a copy of the decision of the Arbitrator, dated August 13, 1999, where the Arbitrator says that it had become apparent that Obaidulla's case is "...mostly a sham...his claim for benefits is not only meritless but an

abuse of the process.” The Arbitrator found Obaidulla’s evidence to be “false” about his employment and pay stubs, with numerous false statements made about his employment history. On page 12 of her report, the Arbitrator says, “I find that Mr. Hussaini was not disabled as a result of this accident. His evidence is so fraught with deceit that it is difficult to determine if he even suffered an impairment.”

[228] My findings, on the evidence before me, mirror those of the Arbitrator, and it is clear that both Namatulla and Obaidulla worked together to defraud the Insurer.

[229] Wellington, reduced the Accident Benefits, and it sued Obaidulla and obtained a Judgment of approximately \$108,000 against him. By this time, Obaidulla had run up what he says is \$35,000 in fees of Dr. Kachooie as well as \$20,000 for acupuncture treatments, which the insurer refused to pay for.

III: LEGAL ANALYSIS

1. The Applicable Provisions of the *Insurance Act*, R.S.O. 1990, c.I.8, as amended (the “Act”)

[230] The Hussaini accident took place on December 25, 1990, at a time when the Ontario Motorist Protection Plan (“OMPP”) was in effect, for accidents occurring on or after June 22, 1990. In order to recover tort damages, for Non-Pecuniary Loss, the claimant, under s. 266(1) (b) of the *Insurance Act*, R.S.O. 1990, c.I.8 (the “Act”), must have a permanent serious disfigurement or a permanent serious impairment of an important bodily function caused by a continuing injury, which is physical in nature. The Court, in determining what is a “serious” injury, considers the extent of any disfigurement, its location, and the effect that it has on the injured person and on that person’s life. Neither of the Hussaini brothers had any disfigurement under this threshold.

[231] The Court has found it impossible to lay down any general guidelines with respect to what is an “important bodily function” and each case turns on its facts. The Court asks whether the function is one that plays a major role in the health, general well being and in the way of life of the injured plaintiff. The term “serious” means one that causes substantial interference with the ability of the injured person to perform his or her usual daily activities or to continue his or her regular employment. The word “permanent” has been held to mean a weakened condition lasting into the indefinite future without any limit.

[232] With respect to the Hussaini brothers’ claims for Pecuniary Loss under the Accident Benefits provisions of the Act, the threshold is really the same as it is for non-pecuniary loss. It is clear from the evidence before me, that in both the case of Namatulla and the case of Obaidulla (as well as Barkatulla who settled all claims before the Trial was completed), the Insurer limited their Accident Benefits recovery in the 1990 accident to approximately 7 months recovery for their pecuniary loss, while each claimed to be unable to ever return to work. Any recovery for pecuniary loss, however, is subject to the statutory deductions for collateral benefits received or available, and subject to the present value of collateral benefits to which the claimant is entitled.

[233] Under the Act, the entitlement to a weekly income benefit is determined by the Statutory Accident Benefits Schedule (the “SABS”), R.R.O. 1990, Regulation 672 of the Act. There are two distinct tests for these benefits, with the first covering claims for weekly benefits up to the 156th week, and secondly for the weekly benefits post-156 weeks. Subsection 12(1) of the Schedule states that the pre-156 week test covers an insured person who:

...sustains physical, psychological or mental injury
as a result of an accident....in which the insured
person suffers substantial inability to perform the
essential tasks of his or her occupation or
employment...

Subsection 13(1) of the SABS provides a benefit for individuals who are not employed at the time of the accident, and the wording is the same with respect to that person’s inability to perform the essential tasks. The applicant for such benefits must therefore prove, on a balance of probabilities, that he or she cannot perform his or her essential job tasks. See: *Plowright v. Wellington Insurance Co.* (October 29, 1993-O.I.C. File No. A-003985). The applicant must also show that the effects of the injury are such that it prevents him or her from carrying out the necessary and key tasks that he or she normally performed before the accident.

[234] Section 12 of the SABS, sets out when pain becomes compensable. It has been held that such pain must substantially interfere with an insured person’s ability to perform the essentials tasks of his or her employment or occupation. If the pain is not disabling, it is not compensable. See: *LaPlante v. Pilot Insurance Co.*, [1995] O.I.C.D. No.25, File No. A-003567. In the case before me, Namatulla and Obaidulla each claims to have suffered soft tissue injuries causing neck pain and back pain, as well as other problems. While Obaidulla, during the Trial, settled his claim for Accident Benefits with the Insurer, Namatulla continues to maintain that he is entitled to Accident Benefits.

[235] Since Namatulla’s Accident Benefits were terminated by the Insurer after 7 months, and his claim continued throughout the 14 years, it statutorily falls within the Post-156 week Test under the SABS. In this Test, the applicant is not paid for the first week of disability and must prove that the injury so-claimed has continued during the whole time and has prevented the insured from engaging in any occupation or employment for which he or she is reasonably suited by education, training or experience. The case law has held that suitable work is not limited to what the applicant was doing at the time of the accident. As long as the job is not substantially different in nature, status or remuneration, it may be an appropriate alternative.

[236] Namatulla claims he was working as a plumber for A-Z at the time of the 1990 accident. He originally had not filed his 1990 income tax return to show this, but he later amended it. A-Z (Namatulla’s company) provided employment documents for him and the other brothers to apply for Accident Benefits. Dr. Chen saw all of them and completed the medical forms for each to apply. Dr. Chen, in his evidence, says that the

Insurer cut-off Namatulla's benefits too soon. This is not, however, what other medical practitioners say.

[237] In my view, there is no strong evidence before me that Namatulla was totally disabled from the accident. I find Namatulla's and Obaidulla's evidence about how the 1990 accident occurred to be without credibility. I accept the evidence of Bains that she entered Highway 27 from Belfield Road and was in the right lane going north, when she went slightly over the middle line between the two northbound lanes, thereby hitting the back right bumper of the Hussaini vehicle. I accept her evidence that this caused little damage to that car and no visible damage to the Dhillon car she was driving. The repairer, who examined the Hussaini vehicle, says in his estimate that there was some previous damage to the car. In addition, I find that there was no impact to the left-side driver's door and left front bumper of the Hussaini automobile, as Namatulla and Obaidulla claims there was. I find that there was no cracked windshield from the accident. This damage is not shown in the photographs presented in evidence. I find that the Hussaini automobile was being driven by Namatulla in the left-hand lane and proceeding north on Highway 27, at a speed somewhere between 60 and 90 k.p.h. The evidence of the speed varies, depending when and to whom Namatulla gave that evidence.

[238] I find the stories told by Namatulla and Obaidulla about how seriously they were injured in the 1990 accident to be pure fabrication. Both Bains and Dhillon testified that none of the brothers appeared injured after the accident. Bains' evidence is that one of them said that none of them were hurt immediately after the accident. I further accept Bains' evidence that two of them were able to accompany her to the pay phone at the Holiday Inn and that they walked there from the scene of the accident. I accept her evidence that the Hussaini brothers exited the car easily and that none had to be "dragged out". There is no evidence in any of the medical reports that either Namatulla or Obaidulla lost consciousness after the accident occurred.

[239] The only reason these brothers would have for fabricating how the accident occurred and what damage they say was done to the car, and what injuries they say happened to them, was to obtain Accident Benefits and to claim general damages for pain and suffering. It is now clear from the 14 years of medical evidence before me that neither Namatulla or Obaidulla ever intended to return to work or even try to return to work. There is no evidence to support statements by them that they tried once and could not do the work. They all live on Social Welfare or government Disability payments, they live in houses owned by their wives (neither of whom works), and they seemingly have no bank accounts or financial records from which bills are paid.

[240] The surveillance tapes show that both Namatulla and Obaidulla could move easily, could lift loads they claimed they could not, had easy rotation of the neck and back, which for years they claimed they could not move. Namatulla's surveillance tapes were filmed in 1993, about 2 ½ years after the accident, and within the period of time that was pre-156 Weeks under the SABS.

[241] With respect to the medical evidence that supports the position of the Insurer that the injuries of Namatulla were nothing more than soft tissue injuries of the whiplash variety that normally heal within a 12 month period, I accept the evidence of Dr. Langer that supports the Insurer stopping payment of Accident Benefits and even reducing them before stopping them, to be the proper diagnosis. Both Dr. Roscoe and Dr. Virgin, who sent reports to Dr. Chen, saw Namatulla before Dr. Langer did. Dr. Roscoe makes it quite clear in his report that Namatulla could return to work. Dr. Majesky's analysis of the X-rays and CAT scan also support this position. With Dr. Chen and Dr. Lam, it appears that Namatulla found either a sympathetic ear for several years or fooled them with his exaggerated and stylized manner of presenting himself with injuries.

[242] I therefore find that the Insurer, State Farm, quite properly stopped making the Accident Benefits payments to both Namatulla and Obaidulla when it did, based on the sound medical evidence it had. It also sent them back to see Dr. Langer for a second assessment and conducted the surveillance after their legal claims were made, to examine them again and see if his position and diagnosis had changed. It had not.

[243] There is no real evidence of injury at all at the time of the accident. No one went to an emergency ward after the accident. No one suffered any cuts or bruises, and no one had any immediate complaints of injury at the scene of the accident. The Hussaini brothers were, however, interested in getting the \$700 they did receive immediately. Some time after that and before they went to see the Adjuster, the Accident Benefits scheme was born.

[244] In *Caruso v. Guarantee Co. of North America*, [1996] O.I.C.D. No. 71, File No. A-006856, the Arbitrator set out the test in paragraph 81 with respect to the strong medical evidence that the applicant must adduce to show that he or she is totally disabled, and must show that he or she has made a *bona fide* effort to find some sort of suitable employment. I find that Namatulla did not meet the test. The Insurer asked for additional information from him and Dr. Chen, and when it was not forthcoming, the Accident Benefits were firstly reduced and then stopped.

2. The Claims for loss of past and future income

[245] In his Submissions to me, counsel for Namatulla asks for damages for Namatulla's past loss of income and for future loss of income, using the Delaney Report in support of this position. The Insurer correctly pointed out that such claims for damages for loss of income, were never pleaded by Namatulla, at any time throughout the 14 years this matter has been in litigation. There is only mention, in the Trial Record before me, of claims made by Namatulla in the November 30, 1992 Claim for general damages in the amount of \$250,000 and for special damages of \$150,000. In the Amended Statement of Claim dated May 1998, there is a claim for post judgment interest and the special damages claim was increased to \$500,000. Further, there is no evidence before me of any actual loss of past or future income, since Namatulla has been receiving firstly Social Welfare and latterly, Ontario Disability benefits since the 1990 accident.

[246] The Delaney Report was based on an incorrect date for the date of the accident, and the author of the Report incorrectly believed that Namatulla had an income loss of \$600 per week or \$30,960 per year. None of these facts are correct and Namatulla has not pleaded such losses. Even if this were not the case, Namatulla did receive some Accident Benefits and Delaney and counsel for Namatulla did not take this into account. This part of the relief now asked for by him for damages for past and future loss of income is therefore dismissed.

3. The plumbing businesses

[247] In the case before me, both Namatulla and Obaidulla were claiming that they had serious soft tissue injuries that created great pain and suffering for them and which prevented them from ever returning to work. The career paths of the Hussainis differ somewhat on the evidence. Namatulla produced evidence, through his temporary Plumber's Licence, that he was trained in plumbing tasks, although he was not fully licensed. As for Obaidulla, what he latterly claimed was that he was "a plumber's assistant." He had no training in this work, and whatever work he says he did for A-Z could have been nothing more than that of an unskilled labourer. His earlier work was done by him at the gas bars he worked at before the 1990 accident. There is no evidence he had the bookkeeping skills he claims he had.

[248] The problem I had with all of the evidence given by Namatulla and Obaidulla regarding the A-Z Plumbing business, is there was no corroborative evidence other than what the Hussaini brothers manufactured and falsified. There were never any books or records produced to verify any of what they said. While there were many receipts produced, after a careful review of them, it can be seen that there was no logical order to them, everyone is said to have paid by cash but there are no banking records to show deposits of money, no cancelled cheques for any payment of wages or supplies, and no credit card receipts for supplies bought by the brothers for these alleged jobs or for the trucks they said they rented now and again.

[249] I further note that none of the jobs they allege they did were small jobs. No hourly rate is shown on any document for any of the brothers who allegedly worked for A-Z. They were supposedly paid by cash and no income tax, E.I. or C.P.P. was deducted. Income Tax Returns were amended, with no proper supporting documentation, and I found neither of the witnesses who claim work was done for them, to be helpful in the evidence they gave to the Court. They appeared to be rehearsed in what they said about the business and neither had a single piece of paper to verify anything that had been done.

[250] I accept that Namatulla was working before the accident, at various places as noted in the evidence, and in his original Accident Benefits Claim and he did work at times for companies that did plumbing work. He may have even set-up A-Z before the accident, but I do not accept either his evidence or that of Obaidulla that all brothers had worked in the business with him at the time of the accident.

[251] I am satisfied on the evidence before me that if A-Z Plumbing existed at all, at the time of the 1990 accident, it was in the gestation stage and Namatulla may have done

a few jobs for acquaintances before the accident. I find the evidence of Namatulla and Obaidulla about how the business operated before the 1990 accident, how all the records were “lost”, how they somehow kept the receipt books, how everyone paid cash and why the receipts for small jobs were lost, to be totally without credibility. In my view, this was a whole scheme set up by the Hussaini brothers who were in the car accident, in order to be able to defraud the Accident Benefits Insurer to ensure that all of them were paid such Benefits, whether they were working or not at the time.

[252] We know also from the evidence, that Namatulla and Obaidulla set up second fraudulent Accident Benefits’ claims after both Namatulla and Obaidulla were each involved in separate second accidents. They set-up the fictitious company, “S.N. Plumbing” and provided false documentation to provide the Insurer with the forms and medicals from which to make new Accident Benefits claims. They failed to tell their new family doctors and other specialists about the 1990 accident and failed to tell their old family doctor, Dr. Chen, about the later accidents. Thus a second fraud was committed by them to secure Accident Benefits Claims.

[253] There were also claims made by Namatulla’s wife in order to get homecare help benefits, which were paid to her sister-in-law, who was also in the same car accident and apparently uninjured.

4. The Claims for Non-Pecuniary Damages

[254] Both Namatulla and Obaidulla are claiming general damages for their alleged pain and suffering after the accident. Namatulla has claimed \$100,000 and Obaidulla has claimed \$225,000. Both say they are permanently disabled with their soft tissue injuries, which have also prevented them from ever returning to work. As has been noted earlier in these Reasons, in order to claim these damages, the claimant must be shown to have a permanent serious impairment of an important bodily function caused by a continuing injury, which is physical in nature, as set out under the provisions of the OMPP.

[255] The Court, in examining this issue, must look at the trilogy of case law that has developed in relation to what is meant by “permanent serious impairment” and a “continuing injury”. The trilogy is comprised of the following cases: *Meyer v. Bright*, (1992), 9 O.R. (3d) 225; *Dalgliesh v. Green* (1993), 12 O.R. (3d) 40; and *Lento v. Castaldo*(1993), 12 O.R. (3d) 225, [1993] O.J. No.2446 (Ont. C.A.). In these cases, the Court would not give any general guidelines to follow, as each case is to be decided on its facts, as the Court must consider what is the effect on the injured person as a whole and what is the effect the impairment of a bodily function has had on that person.

[256] With respect to Namatulla, he says that his soft tissue injuries to his neck, back and shoulder are continuing and permanent. He relies strongly on the evidence of Dr. Kachooie, who saw Namatulla beginning in 2002. He states that there is evidence of small bulging of discs and disc herniation at C4-5 and C7-T1, as shown on an MRI. Other doctors, however, have said that this mild bulging is not serious and not disabling, and support the position that Namatulla was able to go back to work years ago. Dr. Langer examined all of the later reports from Namatulla’s doctors and concludes that this

is not a serious issue nor is the spinal stenosis, as noted earlier in these Reasons. Dr. Kachooie also says that people who suffer whiplash injuries can develop degenerative disc disease within 15 years of the accident, but I see nothing in the overall medical reports over the 14-year period in question to support this in Namatulla's case. He was involved in two subsequent accidents to the 1990 one, and told the doctors he saw after the second accident that he had no previous accident and was in good health at the time of the second accident. Therefore, in my view, the evidence of Dr. Kachooie must be discounted, given the lack of credibility regarding Namatulla's complaints and his manipulation of the medical system by going to three different general practitioners at the same time and telling each different stories about his accident/accidents. I find that Namatulla, has not, met the civil standard of proof that on a balance of probabilities, that he is permanently disabled by injuries caused by the Defendant Bains.

[257] In *Chrappa v. Ohm*, [1996] O.J. No. 1663, Court File No. 93-CU-69827, Madam Justice Lax looked at the issue of whether soft tissue injuries suggested by a plaintiff in that case, was a continuous injury and whether it was a serious permanent injury of a bodily function with the meaning of s. 266(1)(b) of the Act. In that case, however, the Court found that there was no disagreement on the medical evidence about the plaintiff's soft tissue injuries. In the case before me, there is strong disagreement among the doctors over the years as to the nature of the injuries and whether they were continuing and serious. Nor do I think that either Namatulla's case or that of Obaidulla falls within the parameters of *Alderson v. Callaghan* (1998), 40 O.R. (3d) 136 (C.A.).

[258] It is the position of Bains and Dhillon that one must look at the whole picture over all these years, to really assess what has taken place, in what they see is a scheme to defraud the insurer, and for which they paid \$700. There is clear evidence before me, and I so find, that both Namatulla and Obaidulla lied to the insurers, lied to various doctors over the years, lied to get duplicate and triplicate prescriptions of various drugs, and worked in concert to perpetrate a fraud on Wellington Insurance, in Obaidulla's second accident, with the false documents they manufactured for S.N. Plumbing, a fictitious company and alleged employer of Obaidulla and his wife. I reject Obaidulla's evidence, in its totality, about how his brothers conspired to do this to him. Namatulla was clearly a conspirator with Obaidulla in this fraud and they both worked in concert to affect Obaidulla's second set of Accident Benefits payments.

[259] With respect to Namatulla's second accident, he defrauded Halifax into providing him with Accident Benefits by saying that he was the person in the home who had the child-care and did the household chores. This evidence is completely contradictory to what he was claiming against the Insurer in the 1990 accident and kept maintaining for the 14 years post-accident. He then tries to say that this was the mistake of the adjuster, who gave him the wrong form. It also contradicts the evidence of Namatulla's wife, who said she got no help from him over all these years, and that he was never able to even lift any of their 4 children from the time each was born.

[260] As for Dr. Kachooie's evidence, I have noted in these Reasons that Dr. Kachooie's evidence stands out as being quite different from all the orthopaedic surgeons and specialists who saw Namatulla over the years. While I am aware that two of these

specialists, Dr. Virgin and Dr. Bateman, are now deceased and could not be cross-examined on their reports, both were never given the full picture by Namatulla, as can be seen in their reports. Even if this were a problem, there is sufficient evidence given at Trial to support Dr. Virgin's findings that Namatulla could have returned to work. Further, Dr. Kachooie was never given the full picture by Namatulla. Even Dr. Chen changed his position over the years about Namatulla's credibility in relation to his complaints about his injuries. There were simply no consistent findings by the doctors seen by Namatulla to say that he fell within the parameters of s. 266(1)(b) of the Act.

[261] I find on the totality of the evidence before me that Namatulla suffered no permanent serious impairment of an important bodily function caused by a continuing injury, which is physical in nature. He is therefore not entitled to any Non-pecuniary damages. I further find that he is not entitled to reimbursement for any of his so-called out-of-pocket expenses for prescriptions he received, which were neither covered by OHIP nor paid by Social Welfare or Disability on his behalf. His failure to truthfully tell each doctor who attended to him what prescriptions he was already in receipt of, in my view has led to an abuse of the system, for which he should not be reimbursed.

[262] With respect to Obaidulla's claim for Non-Pecuniary damages, he also claims that he has suffered soft tissue injuries that have resulted in chronic pain, which is persistent pain that has continued throughout the years since the 1990 accident. He relies on the finding of the Court of Appeal in *May v. Casola*, [1998] O.J. No. 2475(C.A.), where Mr. Justice Carthy held as follows:

In our view a person who can carry on daily activities, but is subject to permanent symptoms including, sleep disorder, severe neck pain, headaches, dizziness and nausea, which, as found by the motions court judge, had a significant effect on her enjoyment of life, must be considered as constituting serious impairment.

Obaidulla professes not to have been able to carry on daily activities since the 1990 accident. He then had the second accident in 1996, where he lied to the insurer, as noted earlier in these Reasons, and claimed he was with S.N. Plumbing, was working, had no previous accident and was entitled to more Accident Benefits. This key event goes to the heart of Obaidulla's lack of credibility throughout all of these proceedings.

[263] Obaidulla says that he has chronic pain, noting that pain cannot be tested objectively, and is subjective in nature. See: *Barrett v. Champagne* (1996), 28 O.R. (3d) 205 (Ont. Ct. (Gen. Div.)). It does not show up on a bone scan or an MRI or other forms of objective testing. It should be noted, however, that no one diagnosed Obaidulla with chronic pain before his deception was discovered after the second accident.

[264] Obaidulla had a bad work history to begin with, when the 1990 accident occurred. Dr. Langer said that Obaidulla, also, should have been back at work after 7 months but this did not occur. The first and second surveillance tapes each shows

Obaidulla walking in any easy manner, freely moving his head and body, all quite different from his presentations to various doctors over the years. On the evidence before me, I agree with Dr. Langer that Obaidulla should have returned to work after 7 months of Accident Benefits. Although counsel pointed to Obaidulla's massive doses of prescription medication between 1993 and 2002, I have no confidence that he took all of this medication. There is no analysis of the side effects of taking all these drugs, nor how they interact with one another, and none of his general practitioners knew about the drugs prescribed by other doctors.

[265] In my view there is no credible evidence to support Obaidulla's position that he has a permanent serious impairment of an important bodily function caused by a continuing injury, which is physical in nature, which prevents him from returning to work. His injuries do not fall within the meaning of s. 266(1)(b) of the Act. If he suffered any soft tissue injuries from the 1990 accident, they were very minor and he should have recovered within the year. The injuries, if any, were neither serious nor permanent. He, too, lied about how the accident occurred and participated in the fraud against the insurers.

[266] It is the position of the Insurer that it makes no common sense that these two brothers who were in the same automobile that Bains hit, should have exactly the same symptoms, should (as they claim) have the same injuries and neither of whom has recovered in 14 years, yet a fourth brother was uninjured while he sat in the back seat with Barkatulla, who also claimed the same injuries but has settled his claims. The Insurer also says that it makes no logical sense, that all these brothers, who were living at home with their parents (although two were married with brides still living in India), should be saying they can never work again, yet each has produced children over the years that require support, have wives that do not work, have cars and live in houses they claim are owned by their wives who do not work.

5. Conclusions

[267] In their claims for Accident Benefits against the Insurer, State Farm, each of the three brothers listed as Plaintiffs, claimed \$1,000,000 each in damages for loss of Accident Benefits. On October 14, 2004, I endorsed on the Trial Record that the claimant, Barkatulla, had settled all of his claims and, on consent, I made an Order dismissing his claims without Costs. I was then told that Obaidulla had settled his claims against the Insurer. I made a further endorsement, on consent, dismissing his claims without Costs.

[268] Based on all the evidence before me and for the reasons I have set out in this Judgment, I dismiss in its entirety the claim of Namatulla against State Farm. Order to go accordingly. If the parties cannot otherwise agree on Costs, I may be spoken to.

[269] In their Statement of Claim for tort damages dated November 30, 1992, against Dhillon and Bains, Namatulla and Obaidulla each claims General Damages in the amount of \$250,000 and Special Damages in the amount of \$150,000. This was increased in their Amended Statement of Claim to \$500,000. The Amendment is not clear in its wording and since it does not state whether each claims that amount in total for general and special damages, or whether they all claim it together as one amount. I am unclear why such an Amendment was made with this wording, but it matters not in this Judgment. The tort claims of Namatulla and Obaidulla are dismissed in their entirety for the reasons I have set out in this Judgment. All Orders to go accordingly. If the parties cannot otherwise agree on Costs, I may be spoken to.

[270] Judgment to issue in the terms as set out herein.

Greer J.

Released: June 29, 2005

COURT FILE NO.: 04-CV-273686CM4
92-CT20755-CM
DATE: 2005/06/29

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

SYED NAMATULLA HUSSAINI, et al.
Applicants

- and -

HARJOT RITA BAINS also known as RITA
SHERGILL et al.
Defendants

Court File No. 04-CV-273720-CM4

B E T W E E N:

SYED NAMATULLA HUSSAINI, et al.
Plaintiffs

- and -

STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY
Defendant

REASONS

Greer J.

Released: June 29, 2005

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